AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

FEDERAL REGISTER

VOLUME 10 NUMBER 142

Washington, Wednesday, July 18, 1945

Regulations

TITLE 32—NATIONAL DEFENSE

Chapter IX—War Production Board

AUTHORITY: Regulations in this chapter, unless otherwise noted at the end of documents affected, issued under sec. 2 (a), 54 Stat. 676, as amended by 55 Stat. 236, 56 Stat. 177, 58 Stat. 827; E.O. 9024, 7 F.R. 329; E.O. 9040, 7 F.R. 527; E.O. 9125, 7 F.R. 2719; W.P.B. Reg. 1 as amended Dec. 31, 1943, 9 F.R. 64.

PART 944—REGULATIONS APPLICABLE TO THE OPERATIONS OF THE PRIORITIES SYSTEM

[Priorities Reg. 25, Revocation of Interpretation 2]

USE OF SMALL ORDER PROCEDURE

Interpretation 2 to Priorities Regulation 25 is revoked as it is obsolete since production schedules are no longer authorized under the regulation.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-12978; Filed, July 17, 1945; 11:18 a. m.]

PART 3175—REGULATIONS APPLICABLE TO THE CONTROLLED MATERIALS PLAN

[CMP Reg. 1, Direction 31, as Amended July 17, 1945]

AMMUNITION BRASS STRIP, ROD AND TUBE

The following amended direction is issued pursuant to CMP Reg. 1:

(a) To enable brass mills to best schedule mills at capacity, the services have agreed to a cut-off date on directives covering ammunition brass strip, rod, and tube.

(b) Accordingly, on the last day of each month each brass mill is to close its order books for the following month for ammunition brass strip, rod, and tube.

(c) [Deleted July 17, 1945.]

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-12974; Filed, July 17, 1945; 11:18 a. m.]

The Codification Guide, consisting of a numerical list of the parts of the Code of Federal Regulations amended or added by documents appearing in this issue, follows the table of contents.

PART 3270—CONTAINERS

[Conservation Order M-81, Interpretation 1]

WHEN BLACKPLATE CANS ARE CHARGEABLE TO QUOTA

The following interpretation is issued with respect to Conservation Order M-81:

(a) Under paragraph (g) of Order M-81, except in certain specified cases, any use of tinplate or terneplate cans must be charged to the packing quotas set forth in Schedule A. A person's "packing quota" as defined in paragraph (b) (8) includes the quantity of blackplate which he is permitted to use. Hence, even though cans made only of blackplate under paragraph (c) need not be charged to any packing quotas in Schedule A, the blackplate in a can containing also tinplate or terneplate must be so charged along with the tinplate or terneplate.

(b) For example, in the case of the use of a can consisting of a blackplate end and a fibre body, the blackplate in such can is not chargeable to any quota. On the other hand, where the can consists of a blackplate end and a tinplate or terneplate body, the blackplate and the tinplate or terneplate are all chargeable to the applicable packing quota in Schedule A.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-12976; Filed, July 17, 1945; 11:18 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[Conservation Order M-328, Direction 19]

REJECTS FROM CERTAIN MILITARY CONTRACT CANCELLATIONS

The following direction is issued pursuant to Conservation Order M-328:

Notwithstanding the provisions of paragraph (e) (3) (i) and Schedule B of Con-

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FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following legal holidays, by the Division of the Federal Register, the National Archives, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U.S.C., ch. 8B), under regulations prescribed by the Administrative Committee, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

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The 1943 Supplement to the Code of Federal Regulations, covering the period June 2, 1943, through December 31, 1943, may be obtained from the Superintendent of Documents, Government Printing Office, at $3.00 per book.

Book 1: Titles 1–31, including Presidential documents in full text.

Book 2: Titles 32–50, with 1943 General Index and 1944 Codification Guide.

The complete text of the Cumulative Supplement (June 1, 1938–June 1, 1943) is still available in ten units at $3.00 each.

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servation Order M–328, material which under paragraphs (g) (2) of Order M–388A, (b) (5) of Order M–388B, or (b) (5) of Order M–388C may be delivered free of the set-aside or rated delivery quotas of these orders, shall also be free of the restrictions of Schedule B of Order M–328.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45–12977; Filed, July 17, 1945; 11:18 a. m.]

PART 3290—TEXTILE, CLOTHING AND LEATHER

[Conservation Order M–51, as Amended July 17, 1945]

PIGS' AND HOGS' BRISTLES AND BRISTLE PRODUCTS

The fulfillment of requirements for the defense of the United States has created a shortage in the supply of pigs' and hogs' bristles and brushes made therefrom for defense, for private account, and for export; and the following order is deemed necessary and appropriate in the public interest and to promote the national defense:

§ 3290.161 *Conservation Order M–51*—(a) *Definitions.* In this order:

(1) "Bristles" means pigs' or hogs' bristles, including riflings, 2 inches or longer, whether new, reclaimed, raw, dressed, imported or domestic.

(2) "Painters' brush" means any brush having a ferrule and used in the painting, varnishing or decorating trade (including all types of brushes specified in the Brush List attached to this order.

and all brushes of similar construction or use).

(3) "Ferrule" means the band by which the bristles of a painter's brush are attached to the handle.

(b) *Importation.* Notwithstanding any other order, rule, regulation or direction, or any certificate or authorization, no person other than Defense Supplies Corporation or U. S. Commercial Company shall import any variety of bristles of the categories known as "Chinese", "Indias", "Russians" or "Siberians". The importation of bristles of other categories shall be according to General Imports Order M-63, as amended from time to time.

(c) *Inventories of bristles.* No person manufacturing brushes shall buy or accept delivery of any bristles 2½ inches or longer if he has more bristles on hand than are required to continue his then current rate of operations for a period of 120 days. In computing such inventory only items A1, 2 and 3 and B1 as listed on Form WPB-431 shall be included.

(d) *Allocation of stock piled bristles.* Reconstruction Finance Corporation shall not dispose of any variety of bristles of the categories known as "Chinese," "Indias," "Russians," or "Siberians," except as authorized by the War Production Board. The War Production Board may from time to time allocate the supply of stock piled bristles of the categories known as "Chinese," "Indias," "Russians" or "Siberians" and specifically direct the quantities, time and manner in which deliveries by Reconstruction Finance Corporation shall be made or withheld. It may also direct or prohibit particular uses of such categories of bristles. Any direction, prohibition or allocation issued pursuant to this paragraph, to be valid, must be in writing in the name of the War Production Board.

NOTE: Paragraph (e), formerly paragraph (d), redesignated and amended July 17, 1945.

(e) *Restrictions on use of bristles—*(1) *Use of bristles over 3⅛ inches.* No person shall use any bristles longer than 3⅜" for manufacturing purposes except as follows:

(i) To manufacture brushes for delivery to or for the account of the Army and Navy of the United States, the United States Maritime Commission, the War Shipping Administration, the Veterans' Administration, the United States Treasury Department or the Department of the Interior;

(ii) To manufacture painters', billboard and paper hangers' paste brushes, except the types identified in the Brush List attached to this order by the following numbers: 12 (mucilage and paste), 13, 14 (painters' duster), 16 (radiator), 22, 23 (paper hangers' smoothing), and 24 (stencil);

(iii) To manufacture the following types of brushes provided the bristles so used are not longer than 3⅞": Brushes required in production operations of any industry; car and window washing brushes (railroad and industrial only); tooth brushes, including dental plate brushes; surgeons' hand brushes and hair brushes.

(iv) To manufacture tooth brushes using bleached bristles not longer than 3⅜ inches.

(2) *Required mixture of other materials.* No person shall manufacture painters', billboard or paperhangers' paste brushes using bristles longer than 2⅜ inches or car and window washing brushes (railroad and industrial only using bristles not longer than 3⅜ inches) unless such brushes contain at least 45% of filling material other than bristles as defined in this order;

However, this restriction shall not apply:

(i) To the manufacture of brushes where the applicable federal specifications require the use of bristles exclusively and the bristles used are not longer than 3⅞ inches, and where the brushes are for delivery to or for account of the Army and Navy of the United States, the Veterans' Administration, the United States Treasury Department, the Department of the Interior, the United States Maritime Commission, the War Shipping Administration, or marine distributors pursuant to authorization by the Maritime Commission on Form WPB-646.

(ii) To the manufacture of Fitch brushes, stencil brushes, flat bakery grease brushes, long handle sash tools, flat-double, single and single X varnish and utility wall brushes using bristles not longer than 3⅜" (item nos. 2, 17, 18, 19, 24, 27, 29, 30 and 36 brush list only).

(iii) To the manufacture of flat triple varnish brushes (item no. 31 of brush list) using bristles not longer than 3⅜".

(iv) To the manufacture of the following types of brushes provided the bristles so used are not longer than 3⅞": varnish brushes, oval (item no. 28 of Brush List): glue brushes (item nos. 7 and 8 of brush list).

(3) *Exceptions to paragraphs (e) (1) and (e) (2).* On letter application the War Production Board may grant exceptions from paragraphs (e) (1) and (e) (2) in the case of brushes required for:

(i) Applying adhesives in aircraft manufacture;

(ii) Dusting operations in shell-loading plants;

(iii) Use in manufacturing self-sealing gasoline tanks, and

(iv) Other uses where special types of brushes are needed.

NOTE: Paragraphs (f), (f) (1), (f) (2), (f) (3), and (f) (4), formerly paragraphs (d) (4), (d) (4) (i), (d) (4) (ii), (d) (4) (iii), and (d) (4) (iv), redesignated July 17, 1945.

(f) *Restrictions on the sale of bristle painters' brushes.* No brush manufacturer shall sell or deliver any painters' brushes containing bristles except on the following classes of orders:

(1) Orders placed by the Army and Navy of the United States, the United States Maritime Commission, the War Shipping Administration, the Veterans' Administration, the United States Treasury Department or the Department of the Interior;

(2) Orders placed by persons entitled to use ratings of AA-3 or higher;

(3) Orders placed by distributors (except marine distributors) rated on Form WPB-547 and orders placed by marine distributors rated on Form WPB-646;

(4) Orders for export rated on Form FEA-419.

No person shall buy or accept delivery of any of these brushes from a brush manufacturer except on these classes of orders.

NOTE: Paragraphs (g), (h), (i), (j), (k), (l), and (m), formerly paragraphs (d) (5), (e), (f), (g), (h), (i), and (j), redesignated July 17, 1945.

(g) *Sale of brushes for export.* No person shall sell or deliver any product containing bristles which he knows or has reason to believe will be exported unless the purchase order contains the number of the export license or release certificate issued by the Foreign Economic Administration or unless the product is ordered by an agency of the United States for delivery pursuant to the Act of March 11, 1941, entitled "An Act to Promote the Defense of the United States" (Lend-Lease Act) or for delivery for the account of the United Nations' Relief and Rehabilitation Administration (U. N. R. R. A.).

(h) *Limitation on manufacture of brushes.* No person shall manufacture any painters' brush:

(1) Of a type other than those specified in the Brush List attached to this order;

(2) With a ferrule of dimensions other than those specified in the Brush List with respect to each brush, or which has an assembly containing an inner band, a bridge or a spout, or which is seamless (except for a shipbottom, stencil, oval varnish or oval sashtool brush), or which is embossed or stamped (except that the size and other markings may be applied if to do so would not require any special or additional operation during the process of manufacturing the ferrule); or

(3) With a handle finished in more than one color.

(i) *Reports.* Every owner of bristles shall file with the Bureau of the Census, Department of Commerce, acting as compiling agent for the War Production Board, not later than the 10th day of each month, a report on Form WPB-431 showing his holdings and consumption of bristles during the preceding month. This requirement has been approved by the Bureau of the Budget under the Federal Reports Act of 1942.

(j) *Communications.* All reports required to be filed and all communications

concerning this order shall unless otherwise directed be addressed to the War Production Board, Textile, Clothing and Leather Bureau, Washington 25, D. C. Ref. M-51.

(k) *Appeals.* Any appeal from the provisions of this order shall be made by filing a letter in triplicate referring to the particular provision appealed from and stating fully the grounds for the appeal.

(l) *Violations.* Any person who wilfully violates any provision of this order, or, who, in connection with this order, wilfully conceals a material fact or furnishes false information to any department or agency of the United States is guilty of a crime, and upon conviction may be punished by fine or imprisonment. In addition, any such person may be prohibited from making or obtaining further deliveries of, or from processing or using material under priority control and may be deprived of priorities assistance.

(m) *Applicability of regulations.* This order and all transactions affected thereby are subject to all applicable regulations of the War Production Board, as amended from time to time.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

NOTE: List amended July 17, 1945.

BRUSH LIST

These are the only kinds of painters' brushes which may be manufactured. (All dimensions are in inches. A maximum variation of 1/32 of an inch is allowed in width and thickness both of which are referred to by inside dimensions. The Federal Specification numbers are to be used only as a means of identifying the type of brush. In case of any inconsistency, the dimensions in Columns 4, 5 and 6 shall prevail over those in the Federal Specifications.)

1 Type of brush	2 Identification No. for ready reference	3 Federal Specification No.	4 Width of ferrule	5 Thickness of ferrule	6 Maximum depth of ferrule
Color-single thickness	1		½	¼	1
			1	5/16	1¼
			1½	7/16	1¼
			2	½	1¼
			3	½	1¼
Fitch	2	HB-241a	3/8	¼	1 9/16
			7/16	5/16	1½
			5/8	5/16	1 5/8
			¾	3/8	1 7/8
			7/8	½	1 13/16
			1¼	5/8	2¼
			1½	¾	2 3/8
			1¾	13/16	2 5/8
			2	7/8	2¾
			2½	7/8	3
Flatting-wall master	3		4¼	1½	1
			5	1½	1
			6	1½	1
			6½	1½	1
Flatting-wall utility	4		5	1¼	1
			6	1¼	1
Flowing fitch-single thickness	5	HB-256	1	5/16	1¼
			1½	7/16	1¼
			2	½	1¼
			3	½	1¼
			4	11/16	1¼
Ox hair and civet hair flowing	6		1	7/16	1¼
			1½	½	1¼
			2	9/16	1¼
			3	11/16	1¼
			4	11/16	1¼
Glue-flat	7	HB-291a	1	7/16	1¼
			2	9/16	1¼
			3	11/16	1¼
Glue-round	8	HB-301a	13/16	13/16	½
			1	1	½
			13/16	13/16	½
			1½	1½	¾
			2	2	¾
			2½	2½	⅞
Kalsomine-Dutch	9		7¼	2¼	1
Kalsomine-flat	10	HB-141	7	⅞	1¼
			8	⅞	1¼
Mottling	11	HB-391	⅞	13/64	1¼
			1 5/16	¼	1¼
			2 5/16	5/16	1¼
			½	5/32	1¼
			¾	5/32	1¼
			1	¼	1¼
Mucilage and paste	12	HB-401 Type 2	1	5/16	1
			2	⅝	1¼
			3	7/16	1¼
			4	½	1¼
Painters' duster flat	13		4	1¼	1
Painters' duster round	14		2½	2½	1
Plasterers'	15		7½	1½	¾
Radiator	16	HB-451	1	¼	1¼
			1½	¼	1¼
			2	5/16	1¼
Sashtool-flat	17		1	7/16	1¼
			1½	½	1¼
			2	9/16	1¼
			2½	⅝	1¼
Sashtool-oval (seamless)	18	HB-491b	½	11/32	1¼
			13/16	½	1½
			1	⅝	1½
			1 1/16	¾	1½
			1¼	⅞	1½
			1 7/16	1 1/16	1½
Sashtool-oval (locked seam)	19		½	11/32	1¼
			13/16	½	1½
			1	⅝	1½
			1 1/16	¾	1½
			1¼	⅞	1½
			1 7/16	1 1/16	1½
Shipbottom (seamless or soldered wire ferrule)	20		2 9/16	1 5/16	1
			2¾	2⅜	1
Signwriters'	21		¼	9/32	1¼
			½	1/64	1¼
Signwriters—Continued	21		¾	17/64	1¼
			1	1/64	1¼
			1½	23/64	1¼
Smoothing paper hanger (2 rows)	22		12	½	1
Smoothing paper hanger (3 rows)	23		12	⅝	1
Stencil (seamless ferrule)	24	HB-621b			
Type I: Rolled edge			1 3/16	1 3/16	1¼
			1 3/16	1 3/16	1½
Type II: Without rolled edge			⅞	⅞	1¼
			1⅛	1⅛	1¼
			1¼	1¼	1¼
			1⅜	1⅜	1¼
			1½	1½	1¼
			2	2	1¼
Stucco-open center	25		3	1¼	¾
			3½	1¼	¾
			4	1¼	¾
			4½	1¼	¾
			5	1¼	¾
Stucco-solid center	26		3½	1¼	¾
			4	1¼	¾
			4½	1¼	¾
Varnish-flat-double	27	HB-701a	1	7/16	1¼
			1½	½	1¼
			2	9/16	1¼
			2½	⅝	1¼
			3	11/16	1¼
			4	11/16	1¼
Varnish-oval (seamless ferrules). Round dimensions may be ovaled to any size.	28	HB-711	17/16	17/16	1¼
			1 11/16	1 11/16	1¼
			1¾	1¾	1¼
			1⅞	1⅞	1¼
			2	2	1¼
			2⅛	2⅛	1¼
Varnish-flat single	29	HB-696a	½	¼	1
			1	¼	1¼
			1½	¼	1¼
			2	5/16	1¼
			3	7/16	1¼
Varnish-flat single X	30		1	5/16	1¼
			1	⅜	1¼
			1½	5/16	1¼
			1½	7/16	1¼
			2	⅜	1¼
			2	½	1¼
			3	½	1¼
			3	9/16	1¼
Varnish-flat, triple	31	HB-706a	1½	11/16	1¼
			2	¾	1¼
			2½	13/16	1¼
			3	⅞	1¼
			3½	⅞	1¼
			1	⅝	1¼
Wall-master A	32	HB-421	3	1	1¼
			3½	1	1¼
			4	1	1¼
			4½	1	1¼
			5	1	1¼
Wall-master B	33	HB-421	3	1	1¼
			3½	1	1¼
			4	1	1¼
			4½	1	1¼
			5	1	1¼
Wall-medium	34	HB-431	3	13/16	1¼
			3½	13/16	1¼
			4	⅞	1¼
			5	⅞	1¼
Wall-syndicate	35		3	⅞	1¼
			3½	⅞	1¼
			4	⅞	1¼
			6	⅞	1¼
Wall-utility	36	HB-436	3	13/16	1¼
			3½	13/16	1¼
			4	⅞	1¼
Whitewash	37	HB-731	7	1⅛	1
			9	1⅛	1

[F. R. Doc. 45-12979; Filed, July 17, 1945; 11:18 a. m.]

PART 3294—IRON AND STEEL PRODUCTION

[General Preference Order M-21-b-3, Revocation]

STEEL DISTRIBUTORS

Section 3294.91 *General Preference Order M-21-b-3* is revoked. This revocation does not affect any liabilities incurred for violation of the order or of actions taken by the War Production Board under the order. The rules affecting a distributor's placing orders for steel to be delivered to stock and the rules affecting deliveries of steel from a distributor's stock to consumers are governed by Direction 3 to Order M-21 and CMP Regulation No. 4 respectively. The placement of orders and the acceptance and delivery of orders for steel remain subject to all other applicable orders and regulations of the War Production Board.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-12975; Filed, July 17, 1945; 11:18 a. m.]

Chapter XI—Office of Price Administration

PART 1418—TERRITORIES AND POSSESSIONS

[RMPR 395,[1] Amdt. 4]

DAIRY PRODUCTS, FISH, AND MEAT IN VIRGIN ISLANDS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Maximum Price Regulation 395 is amended in the following respects:

1. Section 17, Table IV, is amended by changing the price of one item to read as follows:

TABLE IV—MAXIMUM RETAIL PRICES FOR CERTAIN DAIRY PRODUCTS

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
1. Evaporated milk.	14½ oz. can	$0.12	$0.12	$0.13

2. Section 20, Table VIII, is amended by changing the prices of certain items and adding one item to read as follows:

TABLE VII—MAXIMUM RETAIL PRICES FOR CERTAIN CANNED FISH AND FISH PRODUCTS

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
Pilchards:				
Natural	No. 1 tall	$0.13	$0.13	$0.14
	No. 1 oval	.15	.15	.16
Tomato	8 ounce	.09	.09	.10
	No. 1 tall	.14	.14	.15
	No. 1 oval	.15	.15	.16

3. Section 22, Table IX, is amended by changing the prices of certain items to read as follows:

[1] 10 F.R. 5941, 6946, 7799, 8069.

TABLE IX—MAXIMUM RETAIL PRICES FOR CERTAIN MEATS OR MEAT PRODUCTS

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
19. Pork, clear plates, pickled	*Pound* 1	$0.20	$0.20	$0.22
20. Pork, fatbacks, pickled	1	.20	.20	.22

4. Section 26, Table XIV, is amended by changing the prices of one item to read as follows:

TABLE XIV—MAXIMUM RETAIL PRICES FOR DRY SALTED, SMOKED OR PICKLED FISH IN BULK

Commodity	Quantity	Island of St. Croix	Island of St. Thomas	Island of St. John
Pilchards in brine	*Pound* 1	$0.16	$0.16	$0.17

This amendment shall become effective as of July 9, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12932; Filed, July 16, 1945; 11:40 a. m.]

PART 1362—CERAMIC PRODUCTS, STRUCTURAL CLAY PRODUCTS AND OTHER MASONRY MATERIALS

[RMPR 206, Amdt. 12]

VITRIFIED CLAY SEWER PIPE AND ALLIED PRODUCTS

A statement of the considerations involved in the issuance of this Amendment has been issued simultaneously herewith and filed with the Division of the Federal Register.

Revised Maximum Price Regulation 206 is amended in the following respects:

1. Section 4.1 (a) (2) is amended to read as follows:

(2) In the case of sales of sewer pipe products sold f. o. b. factory on a "pick-up basis" or for "less-than-carload shipments by rail" within the West Central Area, South Central Area, and Rocky Mountain Area, as defined below in sections 8.1, 9.1, and 10.1, respectively, any manufacturer may increase his price in accordance with either of the following alternative pricing methods:

(i) By adding an amount not in excess of 10 percent to the highest prices charged by the manufacturer during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class.

(ii) By adding amounts not in excess of such amounts as may be required to maintain discount differentials between prices established under this paragraph and those established by sections 8.4, 9.4, and 10.4, at least as favorable as those existing during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class.

2. Section 4.1 (a) (3) is amended to read as follows:

(3) In the case of sales of sewer pipe products sold f. o. b. factory on a "pick-up basis" or for "less-than-carload shipments by rail" within the East Central Area, as defined in section 7.1 below, any manufacturer may increase his price in accordance with either of the following alternative pricing methods:

(i) By adding an amount not in excess of 9 percent to the highest prices charged by the manufacturer during the month of March 1942 for the same quality, kind and quantity of sewer pipe products delivered to purchasers of the same class.

(ii) By adding amounts not in excess of such amounts as may be required to maintain discount differentials between prices established under this paragraph and those established by section 7.4, at least as favorable as those existing during the month of March 1942 for the same quality, kind and quantity of sewer pipe products delivered to purchasers of the same class.

3. Section 4.1 (a) (4) is amended to read as follows:

(4) In the case of sales of sewer pipe products sold f. o. b. factory on a "pick-up basis" or for "less-than-carload shipments by rail" within the Southern Area, as defined in section 6.1 below, any manufacturer may increase his price in accordance with either of the following alternative pricing methods:

(i) By adding an amount not in excess of 12.3 percent to the highest prices charged by the manufacturer during the month of March 1942 for the same quality, kind and quantity of sewer pipe products delivered to purchasers of the same class.

(ii) By adding amounts not in excess of such amounts as may be required to maintain discount differentials between prices established under this paragraph and those established by section 6.4 at least as favorable as those existing during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class.

4. Section 5.5 is amended to read as follows:

SEC. 5.5. *Maximum prices for extra strength sewer pipe products.* Maximum prices for extra strength sewer pipe products delivered at the purchaser's destination shall be determined in accordance with the following rules:

(a) The maximum prices for straight or mixed carload shipments of extra strength sewer pipe products delivered by rail, full freight allowed, to a point within the states and zones as defined in section 5.1, above, shall be the price listed for the particular size in the applicable rail freight rate column in Table 20, below.

(b) The maximum prices for straight or mixed truckload quantities of extra strength sewer pipe products delivered by motor carrier full freight allowed to a point within the states and zones as defined in section 5.1, above, shall be the price listed for the particular size, advancing to the second higher applicable rail rate column than that which would apply for delivery by rail in the same zone.

TABLE 20

Akron rail freight rate / Schedule number		1-10¢ 1	11-13¢ 2	14-16¢ 3	17-19¢ 4	20-22¢ 5	23-25¢ 6	26-28¢ 7	29-31¢ 8	32-34¢ 9	35-37¢ 10	38-40¢ 11	41-43¢ 12	44-46¢ 13	47-49¢ 14
Nominal diameter (inches)	*List weight per foot (pounds)*														
4	11	$0.1704	$0.1739	$0.1773	$0.1807	$0.1842	$0.1876	$0.1910	$0.1944	$0.1979	$0.2013	$0.2047	$0.2082	$0.2116	$0.2150
6	20	.2608	.2670	.2733	.2795	.2858	.292	.2982	.3045	.3107	.3170	.3232	.3294	.3357	.3419
8	30	.4012	.4106	.4199	.4293	.4386	.448	.4574	.4667	.4761	.4854	.4948	.5042	.5135	.5229
10	42	.5517	.5648	.5779	.5910	.6041	.6172	.6303	.6434	.6565	.6696	.6827	.6958	.7089	.7220
12	52	.7022	.7183	.7345	.7507	.7670	.7832	.7994	.8156	.8319	.8481	.8643	.8805	.8967	.9129
15	85	1.0034	1.0299	1.0564	1.0830	1.1095	1.136	1.1625	1.1890	1.2156	1.2421	1.2686	1.2951	1.3216	1.3482
18	130	1.5552	1.5958	1.6363	1.6769	1.7174	1.758	1.7986	1.8391	1.8797	1.9202	1.9608	2.0014	2.0419	2.0825
21	180	2.1472	2.2034	2.2595	2.3157	2.3718	2.428	2.4842	2.5403	2.5965	2.6526	2.7088	2.7650	2.8211	2.8770
24	230	2.6592	2.7310	2.8027	2.8745	2.9462	3.018	3.0898	3.1615	3.2333	3.3050	3.3768	3.4486	3.5203	3.5921
27	275	4.677	4.7628	4.8486	4.9344	5.0202	5.106	5.1918	5.2776	5.3634	5.4492	5.535	5.6208	5.7066	5.7924
30	350	5.388	5.4972	5.6064	5.7156	5.8248	5.934	6.0432	6.1524	6.2616	6.3708	6.48	6.5892	6.6984	6.8076
36	550	9.049	9.2206	9.3922	9.5638	9.7354	9.907	10.0786	10.2502	10.4218	10.5934	10.765	10.9366	11.1082	11.2798

Fractional rates in excess of the highest rate in one zone fall within the next highest zone.

5. A new section 5.6 is added to read as follows:

SEC. 5.6. *Maximum prices for resellers of sewer pipe products.* Any person purchasing sewer pipe products for resale in the same form may add to his maximum prices established on or prior to April 26, 1944, an amount not exceeding the actual dollars-and-cents increased cost to him resulting from the increase in maximum prices permitted manufacturers of sewer pipe products by Amendment 2, affecting sections 4.1, 5.3, 5.4, as amended, of this regulation.

6. The table in section 7.3 is amended to read as follows:

Discount No.	Illinois, Zones 1, 2, and 5	Wisconsin, Zones 1 and 5	Wisconsin, Zone 2	Michigan, Upper Peninsula	Indiana	Kentucky
1	61	59	57	57	64	64
2	54	51	49	49	61	59
3	54	51	49	49	59	59
4	64	62	60	60	67	65
5	64	62	60	60	67	67
6	57	55	53	53	66	62
7	57	55	53	53	64	62
8	61	59	57	57	64	62
9	55	53	50	50	58	------
10	50	48	46	46	53	55
11	61	59	57	57	64	------
12	47	45	43	43	------	------
13	42	40	37	38	------	------

7. Section 8.4 (b) (2) is amended to read as follows:

(2) The maximum prices per lineal foot for all shipments of Nos. 1 and 2 sewer pipe 27''–36'', inclusive, A. S. T. M. specifications, delivered by motor carrier to points designated by the purchaser for the entire states of Missouri, Illinois, Wisconsin, Minnesota, North Dakota, South Dakota, and Iowa may be charged which do not exceed such maximum prices established in Chart VI above for rail shipments plus 20¢ per lineal foot for all sizes except as provided in paragraph (e) hereof for the St. Louis Metropolitan District Area.

This amendment shall become effective July 21, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12945; Filed, July 16, 1945; 4:12 p. m.]

PART 1340—FUEL

[MPR 88, Amdt. 29]

FUEL OIL, GASOLINE AND LIQUEFIED PETROLEUM GAS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 88 is amended in the following respects:

1. Section 1.1 is amended by substituting the phrase "stove and lamp naphtha (includes pressure appliance fuel)" for the phrase "stove and lamp naphtha."

2. In section 1.2 (a), Item (1) is amended to read: "Retail sales at retail establishments, as such establishments are defined under Revised Maximum Price Regulation No. 137."

3. Section 2.20 (a) is amended to read as follows:

(a) *State of Michigan (except Wayne and Monroe Counties).* In the State of Michigan, except in Wayne and Monroe Counties, the maximum prices of the products listed below in bulk lots f. o. b. shipping points shall be as follows:

PRODUCTS	Cents per gallon
Kerosene and distillate fuel oils:	
46–49 API grav. w. w. kerosene	6.0
41–45 API grav. w. w. kerosene	5.75
No. 1 prime white distillate (fuel oil)	5.50
No. 1 straw fuel oil [3]	5.375
No. 2 fuel oil	5.25
No. 3 fuel oil	5.00
Gas oil U. G. I [3]	4.50
Range or stove oil	(1)
Diesel fuel (distillate): Navy Department Specification 7-0-2 [2]	5.375
Gas enrichment oil or fuel oil: (100–300 Viscosity S. S. U. at 100° F.) [3]	4.50

[1] Range or stove oil shall take the maximum price of the product listed above of the same specifications.

[2] Applies only f. o. b. refineries and only on sales to the United States Government or any agency thereof.

[3] Applies f. o. b. refineries only.

4. Section 4.20 is amended to read as follows:

SEC. 4.20 *Michigan*—(a) State of *Michigan except Wayne and Monroe Counties*—(1) *F. o. b. shipping points for shipment to ultimate destinations in Petroleum Administration for War District 1.* In the State of Michigan, except in Wayne and Monroe Counties, the maximum prices of automotive gasoline according to the specifications listed below in bulk lots f. o. b. shipping points for shipment to ultimate destinations in Petroleum Administration for War District 1 shall be as follows:

SPECIFICATIONS	Cents per gallon
Automotive gasoline:	
75 Oct. ASTM and above	8.75
70–74 Oct. ASTM	7.625
67–69 Oct. ASTM	7.00
Straight Run [1]	6.00

[1] The above maximum price for straight run gasoline when sold as automotive gasoline is also the maximum price when straight run gasoline is sold for use as either stove and lamp gasoline or naphtha, tractor fuel, charging stock (see section 5.1 (e) (5)), or blending naphtha (see section 5.1 (h)).

(2) *F. o. b. refineries for shipment to ultimate destinations other than in Petroleum Administration for War District 1.* In the State of Michigan, except in Wayne and Monroe Counties, the maximum prices of automotive gasoline according to the specifications listed below, in bulk lots f. o. b. refineries for shipment to ultimate destinations other than in Petroleum Administration for War District 1, shall be as follows:

SPECIFICATIONS	Cents per gallon
Automotive gasoline:	
75 Oct. ASTM and above	9.25
70–74 Oct. ASTM	8.125
67–69 Oct. ASTM	7.50
Straight Run [1]	6.00

[1] See footnote below.

(b) *Wayne and Monroe Counties*—(1) *F. o. b. shipping points for shipment to ultimate destination in Petroleum Administration for War District 1.* In Wayne and Monroe Counties in the State of Michigan, maximum prices of automotive gasoline according to the specifications listed below, in bulk lots f. o. b. shipping points for shipment to ultimate destinations in Petroleum Administration for War District 1 shall be as follows:

Specifications: Automotive gasoline:	Cents per gallon
75 Oct. ASTM and above	9.0
70–74 Oct. ASTM	7.875
67–69 Oct. ASTM	7.25
Straight Run [1]	6.00

[1] The above maximum price for straight run gasoline when sold as automotive gasoline is also the maximum price when straight run gasoline is sold for use as either stove and lamp gasoline or naphtha, tractor fuel, charging stock (see section 5.1 (e) (5)), or blending naphtha (see section 5.1 (h)).

(2) *City of Detroit only, f. o. b. refineries for shipment to ultimate destinations other than in Petroleum Administration for War District 1.* Within the city limits of Detroit, maximum prices of automotive gasoline, according to the specifications listed below, in bulk lots f. o. b. refineries for shipment to ultimate destinations other than in Petroleum Administration for War District 1, shall be as follows:

SPECIFICATIONS	*Cents per gallon*
Automotive gasoline:	
75 Oct. ASTM and above	9.125
70–74 Oct. ASTM	8.0

5. In section 4.34 (a) (3) the grades of aviation gasoline listed as 62–65 Oct. ASTM aviation gasoline, 73 Oct. ASTM gasoline and 80 Oct. ASTM aviation gasoline are corrected to read as follows:

62–65 Oct. ASTM (unleaded)
73 Oct. ASTM (leaded)
80 Oct. ASTM (leaded)

6. Section 4.35 (a) is added to read as follows:

(a) *Portland Area.* In the Portland Area maximum prices for automotive gasoline according to the specifications listed below shall be as follows:

(1) *F.o.b. tanker terminals*—(i) *On sales to the United States Armed Forces, Foreign Economic Administration and Federal agencies making purchases under T.P.S. contracts.*[1]

Products	Loaded into tankers [2]	Loaded into barges [3]	Loaded into tank cars or truck and trailers	Loaded into buyer's drums [4]
Automotive gasolines:				
First Structure [5]	7.625	7.75	7.875	8.625
Second Structure [6]	6.50	6.625	6.75	7.50
Third Structure [7]	6.375	6.50	6.625	7.375
U. S. Spec. 2-116	6.50	6.625	6.75	7.50

[1] Maximum prices to other Federal agencies shall be established by application under section 8.3.
[2] When a purchaser of the class specified herein buys loaded into tankers and the seller must use trucks, truck and trailers or tank cars to move the product from his refinery or terminal to the loading point at which the sale is made, his maximum price shall be the sum of his truck and trailer f. o. b. refinery or terminal price, whichever is applicable, plus the actual transportation cost from his refinery or terminal to the loading point.
[3] For single lot deliveries under 6,500 gallons add ⅛ of a cent per gallon.
[4] Prices cover only the product and the unloading, filling, stencilling and reloading of drums into transportation facilities.
[5] First structure automotive gasoline (premium grade), as the term is used herein, means automotive gasoline having a minimum ASTM octane number of 75.
[6] Second structure automotive gasoline (regular grade), as the term is used herein, means an automotive gasoline having a minimum ASTM octane number of 70.
[7] Third structure automotive gasoline (third grade), as the term is used herein, means an automotive gasoline having an ASTM octane number below 70.

7. Section 4.45 (a) is added to read as follows:

(a) *Seattle Area.* In the Seattle Area maximum prices for automotive gasoline according to the specification listed below shall be as follows:

(1) *F. o. b. tanker terminals*—(i) *On sales to the United States Armed Forces, Foreign Economic Administration and Federal agencies making purchases under T. P. S. contracts.*[1]

Products	Loaded into tankers [2]	Loaded into barges [3]	Loaded into tank cars or trucks and trailers	Loaded into buyer's drums [4]
Automotive gasolines:				
First structure [5]	7.625	7.75	7.875	8.625
Second structure [6]	6.50	6.625	6.75	7.50
Third structure [7]	6.375	6.50	6.625	7.375
U. S. Spec. 2-116	6.50	6.625	6.75	7.50

[1] Maximum prices to other Federal agencies shall be established by application under section 8.3.
[2] When a purchaser of the class specified herein buys loaded into tankers and the seller must use trucks, truck and trailers or tank cars to move the product from his refinery or terminal to the loading point at which the sale is made, his maximum price shall be the sum of his truck and trailer f. o. b. refinery or terminal price, whichever is applicable, plus the actual transportation cost from his refinery or terminal to the loading point.
[3] For single lot deliveries under 6,500 gallons add ⅛ of a cent per gallon.
[4] Prices cover only the product and the unloading, filling, stencilling and reloading of drums into transportation facilities.
[5] First structure automotive gasoline (premium grade), as the term is used herein, means automotive gasoline having a minimum ASTM octane number of 75.
[6] Second structure automotive gasoline (regular grade), as the term is used herein, means an automotive gasoline having a minimum ASTM octane number of 70.
[7] Third structure automotive gasoline (third grade), as the term is used herein, means an automotive gasoline having an ASTM octane number below 70.

8. In section 5.1 (e) (4) (ii) the heading of the table of diesel fuel prices is changed from "Diesel Fuels [1] " to "Diesel Fuels (Distillate) [1] ".

9. Section 5.1 (e) (5) is added to read as follows:

(5) *Straight run gasoline when sold for use as another product, f. o. b. Michigan shipping points.* The maximum price for straight run gasoline, f. o. b. shipping points within the State of Michigan, when sold for use as either stove and lamp gasoline or naphtha, tractor fuel or charging stock, shall be as established by section 4.20 of this regulation for straight run gasoline when sold as automotive gasoline.

10. In section 7.2 the line designating Continental Oil Company as the reference seller for Idaho is amended by adding footnote reference number 1 to follow "Continental Oil Company" and by adding footnote 1 to read as follows:

[1] At any point where the tank wagon business of the Continental Oil Company has been taken over by the General Petroleum Corporation of California the latter shall be considered to be the reference seller.

11. Section 7.5 (a) is amended to read as follows:

(a) *When reference seller's maximum tank wagon prices are required.* Except as provided in paragraphs (b) and (c) below, a seller's maximum tank wagon price or prices at a particular delivery point in the States of Arizona, California, Nevada, Oregon and Washington for 80 and 73 Octane ASTM aviation gasoline, first structure (premium grade), second structure (regular grade) and third structure (third grade) gasoline to service station dealers [1]; and for regular grade kerosene to dealers at retail establishments and to domestic consumers; and for P. S. 100 fuel oil and P. S. 200 fuel oil to all classes of purchasers, shall be the reference seller's posted price as of October 14, 1941 for the same grade of the particular product at the particular delivery point plus, in the case of tank wagon deliveries of kerosene and fuel oil in rationed areas, the sum of .3 of a cent per gallon.

[1] On sales of automotive gasoline to service station dealers all deliveries by truck or truck and trailer, unless same are being presently used in lieu of tank cars, are, within the meaning of this paragraph, sales at the tank wagon level.

12. Section 7.5 (b) is amended as follows:

a. Footnote reference No. 1 is added to follow the word "gasoline" and footnote [1] is added to read as follows:

[1] On sales of automotive gasoline to the above purchasers, all deliveries by truck or truck and trailer, unless same are presently being used in lieu of tank cars, are, within the meaning of this paragraph, sales at the tank wagon level.

This amendment shall become effective July 23, 1945; except as to section 7.5 (a) and 7.5 (b) it shall be effective as of October 19, 1944.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12987; Filed, July 17, 1945; 11:32 a. m.]

PART 1358—TOBACCO

[RMPR 549]

FLUE-CURED TOBACCO

Maximum Price Regulation No. 549 is redesignated Revised Maximum Price Regulation No. 549, and is revised and amended to read as follows:

A statement of the considerations involved in the issuance of this regulation has been issued and filed with the Division of the Federal Register.

ARTICLE I—EXPLANATION OF THE REGULATION

Sec.
1. Explanation of the regulation.
2. General definitions.

ARTICLE II—PRICING PROVISIONS

3. Maximum prices for purchases of flue-cured tobacco on the loose-leaf markets.
4. Maximum prices for services rendered in connection with flue-cured tobacco purchased on the loose-leaf markets on direct order.
5. Maximum prices for sales of flue-cured tobacco by dealers.

ARTICLE III—MISCELLANEOUS PROVISIONS

6. Reports.
7. Records.
8. Compliance with this regulation.
9. Geographical applicability.
10. Export sales.
11. Petitions for amendment.

AUTHORITY: § 1358.260 issued under 56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; Pub. Law 108, 79th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681.

ARTICLE I—EXPLANATION OF THE REGULATION

SECTION 1. *Explanation of the regulation.* The purpose of this regulation is to establish maximum prices for sales and purchases of, and for certain services performed with respect to, flue-cured tobacco of any crop year. This regulation fixes maximum prices which may be paid to growers and paid and received by dealers, manufacturers and other purchasers and sellers of that tobacco. Specific dollar and cents maximum prices are fixed for certain services performed by dealers for purchasers. The maximum prices and pricing methods are stated in sections 3, 4 and 5.

SEC. 2. *General definitions.* (a) When used in this regulation, the term:

(1) "Person" includes an individual, corporation, partnership, association or any other organized group of persons, or legal successor or representative of any of the foregoing, and includes the United States or any agency thereof, or any other government or any of its political subdivisions, or any agency of the foregoing.

(2) "Flue-cured tobacco" means United States Types 11a, 11b, 12, 13 and 14 tobacco as classified in Regulatory Announcement No. 118 of the Bureau of Agricultural Economics of the United States Department of Agriculture. When used with specific reference to one or more years' crops, the term refers to that tobacco of the specified year's crop.

(3) "Weighted average purchase price" means the total of prices actually paid in purchases of loose-leaf flue-cured tobacco, less allowable deduction for tied tobacco, divided by the number of pounds of tobacco purchased. Prices actually paid shall include all commissions, fees or other compensation paid by or for the purchaser to a person at the seller's instance or request.

(4) "Farm scrap" means loose, tangled, untied and unstemmed tobacco salvaged as a by-product in harvesting, stripping, classing or tying on the farm, consisting principally of barn and striphouse floor sweepings and inferior quality leaves discarded by growers for auction marketing purposes because of being broken, burnt, worm-eaten or diseased.

(5) "Auction scrap" means loose, untied and unstemmed tobacco consisting entirely of auction floor sweepings, loose and tangled leaves, or portions of leaves, accumulated from droppings or breakage in handling of tobacco on auction warehouse floors and salvaged as a by-product of auction marketing. The term does not include tobacco purchased at auction or directly or indirectly from growers.

(6) "Drop leaves" refers to tobacco leaves, including broken leaves and scrap, resulting from the handling of tobacco in transit or while in receiving rooms, hanging rooms, packing rooms or green storage (but not on the auction warehouse floor or farm) which is not customarily processed with the grade being handled.

(7) "Throw-outs" refers to that tobacco, unsuitable for any bought grade, which is removed during processing on account of being wet, damaged, dead or very green tobacco, or suckers or not similar to dealer's bought grades.

(8) "Pickings" refers to those inferior tobacco leaves or parts of such leaves which are removed because they are not up to the standard of the grade of tobacco being processed.

(9) "Dealer" means any person engaged in the business of buying flue-cured tobacco of any year's crop on the loose-leaf market or otherwise, for his own account or on direct order.

(b) Unless the context otherwise requires, the definitions of section 302 of the Emergency Price Control Act of 1942, as amended, shall apply to other terms used herein.

ARTICLE II—PRICING PROVISIONS

SEC. 3. *Maximum prices for purchases of loose-leaf flue-cured tobacco*—(a) *In general.* The weighted average purchase price paid by any buyer for loose-leaf flue-cured tobacco shall not exceed:

$5.00 per cwt., green weight, for farm scrap tobacco.

$40.00 per cwt., green weight, for loose-leaf tobacco.

A deduction of 4½ cents per pound for all tied flue-cured tobacco purchased may be made from the price paid for such tobacco by its purchaser in calculating his weighted average purchase price.

Example:

50,000 lbs. untied tobacco @ average purchase price of $0.3917 per pound	$19,585.00
450,000 lbs. tied tobacco @ average purchase price of $0.4458 per pound	$200,613.00
Less tied deduction 450,000 lbs. @ 4½¢ per lb	20,250.00
Purchase price for tied tobacco less deduction above	180,363.00
500,000 lbs. loose-leaf tobacco, less allowable deduction	199,948.00
$199,948.00 divided by 500,000 lbs. results in weighted average price per pound	$0.399896

In figuring a weighted average purchase price, purchases on direct order shall be deemed purchases by the buyer for whose ultimate account the tobacco is intended. Amounts paid for farm scrap and auction scrap tobacco shall not be used in figuring a weighted average purchase price for loose-leaf tobacco.

NOTE: All buyers are warned that in paying more than the maximum price for loose-leaf tobacco, they take the risk of violating this regulation, since inability to buy tobacco at lower prices in order to reduce their weighted average purchase price will not constitute a defense.

(b) *Purchases not covered.* If a buyer makes a purchase of loose-leaf flue-cured tobacco for resale in substantially the same form and the tobacco is so resold, his purchase is not covered by this regulation and shall not be included in computing his weighted average purchase price. Redried tobacco is not in substantially the same form as loose-leaf tobacco.

SEC. 4. *Maximum prices for services rendered in connection with loose-leaf flue-cured tobacco purchased on direct order*—(a) *Dealer's charges.* A dealer who purchases loose-leaf flue-cured tobacco on direct order may charge for services rendered in connection with the tobacco purchased, but not in excess of the following amounts:

Services	*Maximum charge per 100 pounds green weight*
Buying at auction or farm scrap	$0.50
Sheeting and delivery F. O. B. warehouse door (when dealer furnishes sheets)	.40
Sheeting and delivery F. O. B. warehouse door (when dealer does not furnish sheets)	.30
Green prizing (when dealer furnishes hogshead)	1.15
Green prizing (when dealer does not furnish hogshead)	.65

	Maximum charge per 100 pounds redried weight
Redrying[1]	$2.50
Stemming	$4.00
Handstemming, stemming loose leaves, drop leaves and scrap	$7.50
Handling and redrying farm scrap	$3.00
Transportation charge paid to common carrier	Actual cost[2]
Lacing hogshead	.75 ea.
Re-weighing hogshead	.10 ea.
Re-stenciling hogshead	.20 ea.

[1] Redrying services include packing and cost of hogshead or other packing material. However, a premium of 50 cents per hundred weight may be charged when the tobacco is packed in cases.

[2] If a dealer uses own vehicle, actual cost, not to exceed common carrier rate.

"Purchase on direct order" means a purchase made in conformity with an agreement to buy for a principal either in the principal's name or for his account.

(b) *Dealer's charge for supervisory services on direct order purchase.* A dealer performing supervisory services in the purchase on direct order of flue-cured tobacco for a particular buyer may charge a fee for such services, but not to exceed the highest customary fee charged by the dealer to the particular buyer for the same services performed with respect to purchases on direct order of the 1942 or 1941 year's crop, whichever is most recent. If the dealer performed no supervisory services for the buyer with respect to purchases on direct order of the 1942 or 1941 year's crop of that type of tobacco, the fee charged by the dealer for such supervisory services shall not exceed the highest customary fee charged therefor by the dealer with respect to purchases on direct order of the 1942 or 1941 year's crop, whichever is most recent, to other buyers of the same class. A dealer who performed no supervisory services for the particular buyer or for other buyers of the same class with respect to purchases on direct order of the 1942 or 1941 year's crop, shall apply by letter to the Office of Price Administration, Tobacco Section, Washington, D. C., for authorization to charge a fee for such services based on the fee charged by his most closely competitive dealer of the same class.

"Supervisory services" means services involving responsibility for establishment of proper grade standards, correlation of grading between the several markets, selection of markets affording the greatest abundance of suitable flue-

cured tobacco, decisions as to the rate of buying from week to week and guiding purchases through frequent visits to the several markets.

SEC. 5. *Maximum prices for sales of redried flue-cured tobacco by dealers*—(a) *For tobacco purchased as loose-leaf tobacco other than on direct order*—(1) *Sales to manufacturers.* A dealer's maximum price to manufacturers for sales of flue-cured tobacco purchased by him as loose-leaf tobacco other than on direct order shall be an amount figured as follows:

(i) The dealer shall multiply his dried in the hogshead cost per pound of the flue-cured tobacco being priced by the mark-up factor 1.16 or by the mark-up factor which he computed for sales to manufacturers and reported to the Office of Price Administration, Washington, D. C. prior to January 15, 1945, according ing to whether the tobacco being priced is to be sold as stemmed or unstemmed tobacco. The higher resulting figure or 2½ cents per pound added to the dried in the hogshead cost, whichever is the higher, plus the following items, if applicable, is the dealer's maximum price per pound to manufacturers.

(*a*) The actual amount of commission paid by the dealer to a tobacco broker doing business as such on or before June 30, 1944 for the broker's services in negotiating the sale of the tobacco to a manufacturer, but not in excess of 3% of the selling price.

(*b*) A charge for warehousing and carrying not in excess of 1% of his dried in the hogshead cost per pound, redried weight, for each full month beginning six months after the tobacco redried in hogsheads has been placed in storage.

(2) *Sales to dealers.* A dealer's maximum price for sales to dealers of flue-cured tobacco purchased by him as loose-leaf tobacco other than on direct order shall be an amount figured as follows:

(i) The dealer shall multiply his dried in the hogshead cost per pound of the flue-cured tobacco being priced by the mark-up factor 1.16 or by the mark-up factor which he computed for sales to dealers and reported to the Office of Price Administration, Washington, D. C. prior to January 15, 1945, according to whether the tobacco being priced is to be sold as stemmed or unstemmed tobacco. The higher resulting figure or 2½ cents per pound added to the dried in the hogshead cost whichever is higher, plus the following item, if performed, is the dealer's maximum price per pound to dealers.

(*a*) A charge for warehousing and carrying not in excess of 1% of his dried in the hogshead cost per pound, redried weight, for each full month beginning six months after the tobacco redried in hogsheads has been placed in storage.

"Dried in the hogshead cost" means the total of the lawful amounts paid for green tobacco, costs of transporting it, and direct costs of handling and redrying. The term does not include charges for warehousing or storage. In computing the elements of "dried in the hogshead cost", charges for services therein shall not exceed the maximum prices established for any service listed in paragraph (a) of section 4, and elements of "dried in the hogshead costs" shall be figured in accordance with the dealer's customary practices and in a consistent manner (e. g., if an element of cost is used in figuring "dried in the hogshead cost" of flue-cured tobacco of the 1945 or future crops, the same element of cost shall have been used in determining the corresponding figure for tobacco of another crop year, etc.)

(b) *For resales of redried tobacco.* (1) A dealer's maximum price for his sales to any class of purchasers of redried flue-cured tobacco purchased by him in redried form from its buyer who purchased it as loose-leaf tobacco shall be an amount figured as follows:

(i) The dealer shall multiply the purchase price for the redried tobacco being priced by the markup factor 1.10 or by the markup factor which he computed for such sales and reported to the Office of Price Administration, Washington, D. C. prior to January 15, 1945. The higher resulting figure, plus a charge for warehousing and carrying, if performed, not in excess of 1% of his purchase price per pound, redried weight, of the tobacco being priced per pound, for each full month beginning six months after that tobacco has been placed in storage by him, is the dealer's maximum price to any class of purchasers.

(ii) A dealer's maximum price for his sales of redried flue-cured tobacco previously owned in redried form by two or more dealers shall not exceed his purchase price for the tobacco being priced, except that the dealer may add a charge for warehousing and carrying not in excess of 1% of his purchase price per pound, redried weight, of the tobacco being priced for each full month after that tobacco has been placed in storage by him.

(c) *Certification by dealers.* Every dealer selling redried flue-cured tobacco shall place upon the invoice or other evidence of sale given by him to the purchaser a complete, correct and signed statement as follows:

> The flue-cured tobacco covered by this invoice (if other evidence of sale is used, specify) in redried condition has been owned by (specify number) persons including this seller. The price charged for this tobacco does not exceed our maximum price under RMPR No. 549 issued by the Office of Price Administration. The Office of Price Administration requires you to keep this statement for examination.
>
> (S) ----------
> Seller

(d) *Sales not covered.* (1) Sales by dealers of stems, drop leaves, pickings, throw-outs and similar waste products salvaged in the handling of flue-cured tobacco are not covered by this regulation.

(2) Sales by dealers of products, such as leaves, strips, coarse and fine scrap, etc., selected and recovered from farm and auction scrap are not covered by this regulation.

ARTICLE III—MISCELLANEOUS PROVISIONS

SEC. 6. *Reports.* (a) Within sixty days after the close of the last auction market every buyer of flue-cured tobacco shall file with the Office of Price Administration, Washington, D. C., a letter showing the following:

(1) The total amount of untied loose-leaf flue-cured tobacco in pounds, green weight, purchased by him and the total amount paid for it.

(2) The total amount of tied loose-leaf flue-cured tobacco in pounds, green weight, purchased by him and the total amount paid for it.

(3) The total amount of farm scrap tobacco in pounds, green weight, purchased by him and the total amount paid for it.

SEC. 7. *Records.* (a) Every buyer of flue-cured tobacco shall make and preserve for examination by the Office of Price Administration for so long as the Emergency Price Control Act of 1942, as amended, remains in effect, records showing with respect to each purchase of such tobacco:

(1) The name of the seller and the date of purchase.

(2) The total number of pounds purchased.

(3) The purchase price paid, and

(4) Any other records of the same kind that he has customarily kept relating to the prices he pays for flue-cured tobacco after the effective date of this regulation.

(b) Every dealer for whose sales of flue-cured tobacco maximum prices or a method of determining maximum prices are prescribed by this regulation must make and keep available for inspection by the Office of Price Administration for so long as the Emergency Price Control Act of 1942, as amended, remains in effect, records of the same kind as he has customarily kept showing prices he charges for, and the persons to whom he sells, that tobacco, and the manner in which those prices were computed.

SEC. 8. *Compliance with this regulation*—(a) *No buying or selling above maximum prices.* On and after July 23, 1945, regardless of any contract, lease or other obligation, no dealer or other purchaser in the course of trade or business shall buy or receive, or agree, offer, solicit or attempt to buy or receive, and no person for whose sales of flue-cured tobacco maximum prices are established by this regulation, shall sell or deliver, or agree, offer, solicit or attempt to sell or deliver any flue-cured tobacco at prices higher than the appropriate maximum price established by this regulation. However, lower prices may be charged, paid, offered and received.

(b) *Evasion*—(1) *In general.* The price limitations in this regulation shall not be evaded, directly or indirectly, whether by commission, service, transportation or other charge or discount, premium or other privilege; or by tying agreement, by any change in manner of packing, any business practice or trade understanding, or in any other way.

(2) *Specific practices which are evasions.* Specifically, but not exclusively, the following practices are evasions:

(i) In the case of a dealer, reduction or elimination by the dealer of his customary discounts or initial credit terms allowed on his most recent sales of the 1937, 1938, 1939, 1940 and 1941 crops to the same purchaser, or if he made no

sales of the 1937, 1938, 1939, 1940 or 1941 crops to the purchaser, reduction or elimination of his customary discounts or initial credit terms allowed on his most recent sales of the 1937, 1938, 1939, 1940, or 1941 crop to purchasers of the same class, except where accompanied by a compensating reduction in his maximum price.

"Initial credit terms" means terms fixing the time for payment of the purchase price agreed to by the dealer and buyer at or prior to delivery of the tobacco.

(c) *Penalties for violations.* Any person violating a provision of this regulation is subject to the criminal penalties, civil enforcement actions, license suspension proceedings and suits for treble damages provided by the Emergency Price Control Act of 1942, as amended.

(d) *Licensing.* The provisions of Licensing Order No. 1,[1] licensing persons who make sales under Price Control, apply to sellers subject to this regulation, but no such license is required of or granted to a farmer as a condition of selling an agricultural commodity produced by him. A seller's license may be suspended for violation of the license or one or more applicable price regulations. A person whose license is suspended may not, during the period of suspension, make any sale for which his license has been suspended.

SEC. 9. *Geographical applicability.* The provisions of this regulation are applicable in the forty-eight States of the United States and the District of Columbia.

SEC. 10. *Export sales.* The maximum price at which a person may export fluecured tobacco shall be determined in accordance with the Second Revised Maximum Export Price Regulation [2] issued by the Office of Price Administration.

SEC. 11. *Petitions for amendment.* Any person seeking a general modification of this regulation may file a petition for amendment in accordance with Revised Procedural Regulation No. 1 [3] issued by the Office of Price Administration.

NOTE: All record keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

This regulation shall become effective July 23, 1945.

Issued this 17th day of July 1945.

CHESTER BOWLES,
Administrator.

Approved: July 6, 1945.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 45-12985; Filed, July 17, 1945; 11:30 a. m.]

[1] 8 F.R. 13240.
[2] 8 F.R. 4132, 5987, 7662, 9998, 15193.
[3] 9 F.R. 10476, 13715.

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[2d Rev. RO 3,[1] Amdt. 28]

SUGAR

A rationale accompanying this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

1. Section 2.8 (a) is amended by changing the fourth sentence to read as follows: "The application (on OPA Form R-315) must be accompanied by a written statement signed by a licensed practitioner, who is authorized by the laws of the State in which he practices to diagnose and treat the illness as to which certification is made."

2. A new section 2.8 (b) is added to read as follows:

(b) Regional Offices may, upon advice of Regional Medical Committees, authorize Boards to issue evidences for specific illnesses. In addition, District Offices, if authorized by the Regional Administrator, may, upon advice of District Medical Committees, authorize Boards to issue evidences for specific illnesses.

This amendment shall become effective July 20, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12988; Filed, July 17, 1945; 11:31 a. m.]

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[Rev. RO 13,[2] Amdt. 84]

PROCESSED FOODS

A rationale accompanying this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

1. Section 2.5 (a) is amended by changing the fourth sentence to read as follows: "The application (on OPA Form R-315) must be accompanied by a written statement signed by a licensed practitioner, who is authorized by the laws of the State in which he practices to diagnose and treat the illness as to which certification is made."

2. A new section 2.5 (d) is added to read as follows:

(d) Regional Offices may, upon advice of Regional Medical Committees, authorize Boards to issue points for illnesses other than those listed on the chart. They may also authorize Boards to issue points, in addition to those specified for illnesses listed on the chart. In addition, District Offices, if authorized by the Regional Administrator, may, upon advice of District Medical Committees, authorize Boards to issue points for illnesses other than those listed on the chart and to issue points, in addition to those specified, for illnesses listed on the chart.

This amendment shall become effective July 20, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12989; Filed, July 17, 1945; 11:31 a. m.]

[1] 9 F.R. 13992, 14642, 15048; 10 F.R. 201, 412, 1143, 1537, 2144, 2581, 2874, 3223, 4105, 4715.
[2] 9 F.R. 3, 104, 574, 695, 765, 848, 1997, 1727, 1817, 1908, 2233, 2234, 3240, 2440, 2567, 2791, 3032, 3513, 3579, 3708, 3710, 3944, 3947, 4026, 4351, 4475, 4604, 4818, 4876, 5074, 5436, 5695, 5829, 6234, 6235, 6647, 6951, 7080, 7081, 7202, 7257, 7345, 7437, 7773, 8798, 9169, 9954, 10087, 10686, 11113.

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[Rev. RO 16,[1] Amdt. 58]

MEAT, FATS, FISH AND CHEESES

A rationale accompanying this amendment, issued simultaneously herewith has been filed with the Division of the Federal Register.

Section 7.7a (e) is amended by adding at the end the following paragraph: "However, an industrial user may not receive a base period use of lard, shortening, cooking or salad oils for any class of products or uses if he substituted during the period mentioned in this section one of those items in place of one for which he has a base period use, or if, during that period, he began using one of those items in addition to one for which he has a base period use. For example, an industrial user having a base period use of lard and no base period of shortening, who discontinued use of lard for any class of products and made a substitute use of shortening for that class of products during the period shortening was at zero point value, may not apply for a base period use of shortening. Similarly, a user having a base period use of lard and no base period use of shortening, who began using shortening as well as lard for any class of products, during the period that shortening was at zero point value, may not apply for a base period use of shortening. The Board (or District Office) with which each industrial user is registered, shall, for each industrial user who received a base period use of any of these items although he is not entitled to such base period use under this paragraph, as amended, deduct from his base the amount allocable to the item which he either substituted or added. Any allotments granted to him for the third quarter of 1945 shall be recomputed by using the revised base. The difference between the allotments granted and the recomputed allotments shall be charged to excess inventory, and the user shall be notified of such charge."

[1] 10 F.R. 2521, 2875, 3223, 3356, 3549.

This amendment shall become effective July 20, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12990; Filed, July 17, 1945; 11:31 a. m.]

PART 1407—RATIONING OF FOOD AND FOOD PRODUCTS

[Rev. RO 16,[1] Amdt. 59]

MEAT, FATS, FISH AND CHEESES

A rationale accompanying this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

1. Section 2.4 (a) is amended by changing the fourth sentence to read as follows: "The application (on OPA Form R-315) must be accompanied by a written statement signed by a licensed practitioner, who is authorized by the laws of the state in which he practices to diagnose and treat the illness as to which certification is made."

2. A new section 2.4 (d) is added to read as follows:

(d) Regional Offices may, upon advice of Regional Medical Committees, authorize Boards to issue points for illnesses other than those listed on the chart. They may also authorize Boards to issue points, in addition to those specified, for illnesses listed on the chart. In addition, District Offices, if authorized by the Regional Administrator, may, upon advice of District Medical Committees, authorize Boards to issue points for illnesses other than those listed on the chart and to issue points, in addition to those specified, for illnesses listed on the chart.

This amendment shall become effective July 20, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12991; Filed, July 17, 1945; 11:31 a. m.]

PART 1425—LUMBER DISTRIBUTION

[RMPR 467,[2] Amdt. 1]

DISTRIBUTION YARD SALES OF HARDWOOD LUMBER

A statement of the considerations involved in the issuance of this Amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 467 is amended in the following respects:

1. Section 2 (a) is amended by adding the following sentence to the second paragraph. "It must be a yard which was in operation prior to December 31, 1942 or which, since that date, has received written approval of the Price Administrator classifying it as a distribution yard".

2. The following new section 17 is added:

SEC. 17. *New yards.* Any person proposing to establish a new distribution yard may apply to the Building Materials Price Branch of the Office of Price Administration, Washington, D. C. for classification of the new yard as a distribution yard and for permission to use the maximum prices in this regulation for sales of hardwood lumber by the new yard out of distribution yard stock. The applicant must offer proof that the new yard will conform to the definition of a distribution yard in Section 2 and that the purpose of establishing the yard is not to evade the provisions of the mill regulations or to get the benefit of the mark-ups in this regulation by unnecessary distribution yard business. The Price Administrator may approve or disapprove applications under this section in whole or in part, subject to restrictions and limitations to prevent violations of this and the several lumber regulations and to effectuate the purposes of the Emergency Price Control Act of 1942, as amended.

This amendment shall become effective July 23, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12982; Filed, July 17, 1945; 11:29 a. m.]

PART 1432—RATIONING OF CONSUMERS' DURABLE GOODS

[RO 9A[1], Amdt. 23]

STOVES

A Rationale for this amendment has been issued simultaneously herewith and has been filed with the Division of the Federal Register.

Ration Order 9A is amended in the following respects:

1. Wherever in this Order Form R-900 is referred to, the phrase "OPA Form R-900" is amended to read "OPA Form R-900 (Rev. 9-44)."

2. Section 6.4 is amended to read as follows:

SEC. 6.4 *Dealers, distributors and manufacturers must return certificates if orders are rejected or cancelled.* (a) Where a dealer or distributor has given up a certificate with his order or contract for a stove, and the order or contract for a stove is rejected or cancelled before a stove has been transferred to him, the person receiving the order or contract must promptly return a certificate for the same type of stove.

3. Section 6.5 (a) is amended to read as follows:

(a) No dealer, distributor, or manufacturer may discriminate in the transfer of stoves covered by this order among consumers entitled to acquire stoves in exchange for certificates.

4. Section 6.5 (b) is revoked.

5. Section 9.3 (b) is amended by adding after the word "disapproval" the phrase "or take such other action as the Washington Office may authorize or direct."

This amendment shall become effective on July 20, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12992; Filed, July 17, 1945; 11:32 a. m.]

PART 1439—UNPROCESSED AGRICULTURAL COMMODITIES

[MPR 426, Amdt. 126]

FRESH FRUITS AND VEGETABLES FOR TABLE USE, SALES EXCEPT AT RETAIL

A statement of the considerations involved in the issuance of this amendment has been issued and filed with the Division of the Federal Register.

Section 15, Appendix I is amended in the following respects:

1. Paragraphs (b) (1) (i) and (ii) are amended to read as follows:

(i) For California and Arizona citrus fruits, "standard container" means a 1⅘ bushel container (wooden nailed box or wire-bound crate) conforming to the specifications of the California Agricultural Code for the standard orange box, the standard grapefruit box or the standard lemon box. The term also includes two "half boxes", two "half strap" boxes, a "full box bag", two "half box bags", and for oranges 8 9-pound containers, 9 8-pound containers, and 14 5-pound containers, containing in each case a quantity of fruit equivalent to that contained in a 1⅘ bushel container described above. Containers other than bags are not standard containers unless they are packed and lidded; and packing and lidding must be done in conformity with any applicable provisions of the Agricultural Code.

(ii) For citrus fruits not grown in California or Arizona, "standard container" means a 1⅗ bushel container (wooden nailed box or wire-bound crate) conforming to the specifications for citrus boxes published in Freight Container Bureau Tariffs No. 2B ICC No. 14, and No. 3A ICC No. 15, as amended. The term also includes two "half boxes", two "half strap boxes", a "full box bag", two "half box bags", or four "quarter box bags"; and for oranges and tangerines 8 10-pound containers, 10 8-pound containers, or 16 5-pound containers; and for grapefruit 7 10-pound containers, 9 8-pound containers or 12 6-pound containers. A container is not a standard container unless it contains a quantity of fruit equivalent to that in a 1⅗ bushel container described above. Containers other than bags are not standard containers unless they are packed and lidded; and packing and lidding must be done in conformity with any appli-

[1] 10 F.R. 2521, 2875, 3223, 3556, 3549.
[2] 9 F.R. 14827.
[1] 8 F.R. 11564.

cable requirements of the Florida Citrus Commission or the Texas Commission of Agriculture, whichever applies.

2. In paragraph (c), Table 1, footnote reference 10 is added to the title and footnote 10 is added to read as follows:

[10] For oranges packed in 8 9-pound containers, 9 8-pound containers or 14 5-pound containers in accordance with the requirements of paragraph (b), the maximum price is 20¢ higher than for Items 1, 2, 7, 8, 9 or 10, whichever applies.

3. In paragraph (c), Tables 2 and 3, footnote 1, the second and third paragraphs are amended to read as follows:

For oranges packed in bushel baskets with a net content ⅝ that of standard containers and packed "fairly tight" or tighter, the maximum price is ⅝ that for Items 1 and 2.

For oranges packed in 8 10-pound containers, 10 8-pound containers or 16 5-pound containers in accordance with the requirements of paragraph (b), the maximum price is 20¢ higher than for Items 1 and 2.

4. In paragraph (c), Tables 6 and 7, footnote 1, the second and third paragraphs are amended to read as follows and Table 8, footnote 8 is amended to read as follows:

For grapefruit packed in bushel baskets with a net content of ⅝ that of standard containers and packed "fairly tight" or tighter, the maximum price is ⅝ that for Items 1 and 2.

For grapefruit packed in 7 10-pound containers, 9 8-pound containers or 12 6-pound containers in accordance with the requirements of paragraph (b), the maximum price is 20¢ higher than for Items 1 and 2.

This amendment shall become effective at 12:01 a. m. July 23, 1945.

Issued this 17th day of July 1945.

CHESTER BOWLES,
Administrator.

Approved: July 9, 1945.

CLINTON P. ANDERSON,
War Food Administrator.

For the reasons set forth in the statement of considerations accompanying the foregoing amendment, I find that its provisions as to maximum prices for grapefruit (except those grown in California and Arizona) and for California and Arizona oranges are necessary to correct gross inequities.

WILLIAM H. DAVIS,
Economic Stabilization Director.

[F. R. Doc. 45-12986; Filed, July 17, 1945; 11:30 a. m.]

PART 1444—ICE BOXES

[MPR 399, Amdt. 20]

NEW ICE BOXES

A statement of the considerations involved in the issuance of this amendment issued simultaneously herewith has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 399 is amended in the following respect:

Section 16, Table C, *Ceiling prices in each state for all other sales of ice boxes at retail* is amended by changing the ceiling price in the District of Columbia of the Arctic brand, Model C-65 ice box with a rated ice capacity of 65 pounds manufactured by the Arctic Refrigerator Company from "$40.00" to "$39.00."

This amendment shall become effective on the 23d day of July 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.
Acting Administrator.

[F. R. Doc. 45-12983; Filed, July 17, 1945; 11:29 a. m.]

PART 1447—GLUE STOCK

[MPR 563,[1] Amdt. 4]

WET GELATIN RAW STOCK

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 563 is amended by changing that portion of section 12 (a) immediately following subparagraph (2) to read as follows:

These maximum prices are based on shipping weights with 5% shrinkage for shipments beyond 55 miles, 3% shrinkage for shipments between 10 miles and 55 miles, and 2% shrinkage for shipments of less than 10 miles. The maximum price for any shipment involving shrinkage in excess of the percentages specified above shall be the maximum price per ton specified above, multiplied by the weight (expressed in tons) actually delivered.

This amendment shall become effective July 23, 1945.

Issued this 17th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12984; Filed, July 17, 1945; 11:29 a. m.]

Chapter XVIII—Office of Economic Stabilization

[Directive 69]

PART 4003—SUPPORT PRICES; SUBSIDIES

1945 CROP TOBACCO PURCHASES AND LOANS

The Secretary of Agriculture has, by letter dated July 6, 1945, recommended my approval of purchase and loan programs with respect to tobacco of the 1945 crop to be carried out by Commodity Credit Corporation. Purchases are to be made for the purpose of meeting requirements in British countries through lend-lease with respect to their military requirements and by cash sale to the respective governments to meet minimum civilian requirements, and for price support and market stabilization if necessary. Loans will be made available at 90 percent of the parity price of tobacco as of the beginning of the marketing year for the several types. The programs are more fully described in the copy of the memorandum from the Director, Office of Basic Commodities, enclosed with the Secretary of Agriculture's letter.

Pursuant to the authority vested in me as Economic Stabilization Director, I hereby authorize and direct the Department of Agriculture to carry out through the Office of Basic Commodities, Commodity Credit Corporation, the 1945 crop tobacco purchase and loan programs described in the Secretary of Agriculture's letter and the memorandum enclosed therewith.

(E.O. 9250 and E.O. 9328, 3 CFR, Cum. Supp.)

Issued and effective this 14th day of July 1945.

WILLIAM H. DAVIS,
Economic Stabilization Director.

[F. R. Doc. 45-12944; Filed, July 16, 1945; 2:55 p. m.]

[Directive 55, Amdt 1]

PART 4003—SUPPORT PRICES: SUBSIDIES

1945-1946 BEEF CATTLE PRODUCTION

Pursuant to the authority vested in me by the act of October 2, 1942 entitled "An Act to Amend the Emergency Price Control Act of 1942, to Aid in Preventing Inflation and Other Purposes," and by Executive Order No. 9250 of October 3, 1943, and Executive Order No. 9328 of April 8, 1943; *It is ordered:*

Directive 55, 1945-1946 Beef Cattle Production, issued July 1, 1945, (10 F.R. 6595), is hereby amended in the following respects:

1. Whenever they appear in said directive, the words "War Food Administrator" are deleted and the words "Secretary of Agriculture" are substituted therefor.

2. Section 3(b) is amended to read as follows:

(b) Upon nisi prius determination in a civil action or proceeding (including a proceeding before a Hearing Commissioner) against an applicant for payment, that such applicant has violated any substantive provision of an Office of Price Administration meat or livestock regulation or order, the Office of Price Administration shall certify the determination to the Secretary of Agriculture, including the period of time during which the violation is found to have occurred. The Secretary of Agriculture shall thereupon withhold payment on all claims of the applicant under this directive for the accounting period in which the violation is found to have occurred. In the event that the determination of violation shall be reversed and such reversal becomes final, the amount of subsidy withheld pursuant to this paragraph shall be paid forthwith. For the purposes of this section, every provision of the regulation or order shall be deemed substantive in nature unless the Office of Price Administration determines otherwise.

(E.O. 9250 and E.O. 9328, 3 CFR, Cum. Supp. pp. 1213, 1267)

[1] 9 F.R. 12645, 13849.

Issued and effective this 13th day of July 1945.

WILLIAM H. DAVIS,
Economic Stabilization Director.

[F. R. Doc. 45-12970; Filed, July 17, 1945; 10:58 a. m.]

Chapter XIX—Reconstruction Finance Corporation [1]

[Rev. Reg. 1, Amdt. 5]

PART 7001—PETROLEUM COMPENSATORY ADJUSTMENTS

Petroleum Compensatory Adjustments Revised Regulation No. 1 of Defense Supplies Corporation, as amended, together with Schedules A through E thereof, was further amended and revised by Defense Supplies Corporation by the issuance on August 1, 1944 of the following:

Amendment No. 5 to Petroleum Compensatory Adjustments Revised Regulation No. 1.

Amendment No. 1 to Revised Schedule A.[2]

Revised Schedule B, as amended effective August 1, 1944.[2]

Revised Schedule C, as amended August 1, 1944.[2]

Schedule D, as amended effective August 1, 1944.[2]

Amendment No. 3 to Schedule E, Description of Supply Terminals and Supply Areas.[2]

1. Section 7001.1, *Definitions*, as amended, is further amended by deleting paragraph (u); by changing the designations of paragraphs (v), (w) and (x) to (u), (v) and (w), respectively; by adding new paragraphs (x) and (y) set forth below; and by changing paragraphs (l) and (q) and newly designated (u) to read as set forth below:

§ 7001.1 *Definitions.* * * *

(l) "Actual origin" means:

(1) In the case of crude, other than crude transported pursuant to Petroleum Directive 63 through the war emergency pipeline system, the well producing the crude imported into District One by the substitute method of transportation.

(2) In the case of crude and compensable products transported pursuant to Petroleum Directives 63 or 73 (8 F.R. 1068, 13343) through the war emergency pipelines system, the point at which such crude or compensable products are delivered to the applicant by Defense Supplies Corporation.

(3) In the case of compensable products and miscellaneous products, except those purchased, or acquired under an exchange in District Two or Three, or transported pursuant to Petroleum Directive 73 through the war emergency pipelines system, the refinery (which term shall include natural gasoline and recycling plants) manufacturing the compensable products or miscellaneous products imported into District One by the substitute method of transportation.

(4) In the case of compensable products and miscellaneous products purchased, or acquired under an exchange in District Two or Three, the point at which the compensable products or miscellaneous products imported into District One are delivered to the applicant under the sale or the exchange: *Provided*, That compensable products or miscellaneous products acquired or loaned under an exchange at Helena, Arkansas, shall not be considered to have been acquired or loaned under an exchange if replacement of like compensable products or miscellaneous products is made at Helena, Arkansas, within the next succeeding calendar month following the month during which the compensable products or miscellaneous products were acquired or loaned under the exchange: *And provided further*, That either the acquired compensable products or miscellaneous products or the loaned compensable products or miscellaneous products were moved through the Project Five pipe line.

* * * * *

(q) "Revenue price increases" means:

(1) In the case of petroleum products for which maximum prices have been established by the Office of Price Administration at any level of sale, the amounts authorized by the Office of Price Administration for the purpose of providing compensation for higher transportation costs involved in the use of substitute methods of transportation, as shown on Schedule C hereof.[2]

(2) In the case of petroleum products for which maximum prices have not been established by the Office of Price Administration at one or more levels of sale, the amounts shown on Schedule C hereof.[2]

* * * * *

(u) "Normal cost of in-transit handling" means an amount determined by multiplying three cents by the number of barrels of crude, compensable products or miscellaneous products moved by the substitute method of transportation, each time in-transit handling would have been incurred had it been moved by the normal method of transportation.

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(x) "Revenue price decreases" means any reductions in the revenue price increases.

(y) "Retail establishment" means any store, shop, garage, service station or other place of business where, during the three calendar months preceding a revenue price decrease, at least 75% of the volume of the petroleum products sold were sold other than by delivery in tank wagon or larger lots.

2. Section 7001.2, *Persons eligible to apply for petroleum compensatory adjustments*, as amended, is further amended to read as set forth below:

§ 7001.2 *Persons eligible to apply for petroleum compensatory adjustments.* Any person who produces, manufactures, acquires or purchases crude, compensable products or miscellaneous products in District Two or Three and imports the same, by substitute method of transportation, for sale or manufacture of petroleum products within District One, or who purchases crude or compensable products from Defense Supplies Corporation at the eastern termini in District One of the war emergency pipelines system for sale or manufacture of petroleum products within such district, or who makes a compensable intra-district movement or a special container movement, may file an application for a petroleum compensatory adjustment on account of any claim for extra costs covered by this part. In addition to the above, any person who, during the twelve months' period ended June 30, 1941, regularly imported compensable products or miscellaneous products for his own consumption within District One, and who imports, by substitute method of transportation, compensable products or miscellaneous products from District Two or Three for his own consumption in District One, shall likewise be eligible to file an application for a petroleum compensatory adjustment under this part. No application for petroleum compensatory adjustment may be filed in respect of any quantity of petroleum or petroleum products imported subsequent to July 31, 1944 in violation of any rules, regulations, orders or directives issued, authorized or approved by the Petroleum Administration for War relating to supply or distribution of petroleum or petroleum products.

3. Section 7001.5, *Extra transportation and compensable product costs*, paragraph (a), *Amount of compensatory adjustment*, as amended, is further amended by changing subparagraphs (1) (vi) and (1) (vii) thereof to read as set forth below:

§ 7001.5 *Extra transportation and compensable product costs*—(a) *Amount of compensatory adjustment.* (1) * * *

(vi) In the case of a compensable intra-district movement which is made from any supply terminal in District One situated on the pipe line of the Plantation Pipe Line Company, including the Defense Plant Corporation extension to Richmond, Virginia, or the pipe line of the Southeastern Pipe Line Company, the excess of (*a*) the lower of the actual cost to the importer of transporting the compensable products from actual origin outside District One to the supply terminal or the cost of the importer's normal method of transportation for such compensable products from normal origin to the supply terminal, plus in either case the substitute cost of in-transit handling at the supply terminal, and plus the actual cost incurred by the applicant in transporting the compensable products from the supply terminal to destination, over (*b*) the cost of applicant's normal method of transportation from normal origin to the same destination.

(vii) In the case of a compensable intra-district movement defined in § 7001.1 (p) (2) which is made from any supply terminal in District One situated outside the area defined in Schedule D [2] other than a supply terminal described in subdivision (vi) of this subparagraph, the excess of (*a*) the cost of transporting like compensable products to such supply terminal from Port Arthur, Texas, by the normal method of transportation of the importer of such products, or, if refined in District One, of the refiner thereof,

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[1] Formerly Chapter XIX—Defense Supplies Corporation.

[2] Filed with the Division of the Federal Register.

plus, the substitute cost of in-transit handling at such supply terminal, except that no substitute cost of in-transit handling will be included in respect to handling at any District One refinery of compensable products manufactured at such refinery, and plus the actual cost incurred by the applicant in transporting the compensable products from such supply terminal to destination, over (b) the cost of applicant's normal method of transportation from normal origin to the same destination.

* * * * *

4. Section 7001.5, *Extra transportation and compensable product costs*, paragraph (a), *Amount of compensatory adjustment*, as amended, is further amended by deleting subparagraph (3) (i); by changing the designations of subparagraphs (3) (ii) and (3) (iii) to (3) (i) and (3) (ii), respectively; by changing newly designated subparagraphs (3) (i) and (3) (ii) to read as set forth below; and by adding new subparagraphs (4), (5) and (6) to read as set forth below:

(3) * * *

(i) If the applicant has acquired petroleum products on which a previous owner has accounted for revenue accruing from the sale of such products under this part, then the amount of such revenue may be deducted from the revenue arising from the sale of products to be credited against the applicant's claim; *Provided, however*, That no such deduction from revenue may be made if the petroleum products thus acquired by the applicant are subsequently exported and are not sold by the applicant in District One. Should there be an excess of deductions under this paragraph over revenue from the sale of products, such excess may be added to the applicant's claim upon the condition that the applicant agrees to continue to account for revenue under this part. When an adjustment is claimed on the ground that a previous owner, other than the seller to applicant, has accounted for the revenue, the applicant shall submit an affidavit in quadruplicate from the seller to applicant stating that the products were purchased from a person who has accounted for such revenues and naming such person and that accountants for Defense Supplies Corporation may make such examinations and audits of any of affiant's books, records and other supporting data as may be necessary to confirm the statements contained in the affidavit or as may be required by Defense Supplies Corporation. Upon the request of Defense Supplies Corporation, the applicant shall obtain and submit to Defense Supplies Corporation any other evidence which may be requested to substantiate the adjustments under this subparagraph.

(ii) The amount of revenue for which the applicant must account each month shall be reduced, beginning with the applicant's claim for the month of November, 1943, by a sum equal to the number of gallons of kerosene, range oil, stove oil, No. 1 fuel oil and No. 2 fuel oil which the applicant moved by other than an intra-district movement to points in the District of Columbia and the States of Maine, Vermont, New Hampshire, Massachusetts, Connecticut, Rhode Island, Maryland, Virginia, New Jersey and Delaware, and the entire eastern part of the State of New York up to and including the Counties of Cayuga, Tompkins, and Chemung, and the entire eastern part of the State of Pennsylvania up to and including the Counties of Bradford, Sullivan, Columbia, Montour, Northumberland, Dauphin and York and which the applicant received at such points during the month covered by the applicant's claim, multiplied by $0.001: *Provided*, That such products were imported into District One by rail, barge or lake steamer. The amount computed pursuant to this subdivision shall be deducted from the amount reported by the applicant in Item 22 of D. S. Form T–39, and the resulting net total shall be carried forward to D. S. Form T–35: *Provided, however*, That if such resulting net total is a negative amount then such negative amount may be carried forward to D. S. Form T–35 and added to the applicant's claim upon the condition that the applicant agrees to continue to account for revenue under this part.

(4) In the event of any revenue price decrease, an applicant who prior to the effective date of the revenue price decrease has filed under this part a claim which has not been withdrawn may obtain reimbursement in the amount of any refund made in compliance with the following conditions:

(i) The refund shall, within 60 days after such revenue price decrease becomes effective, be paid or credited to the account of a person, other than an applicant under this part, having on hand on the effective date of such revenue price decrease in stationary storage or in transit thereto other than at a retail establishment, an inventory of petroleum products held for resale, to which such revenue price decrease is applicable, which products were purchased from an applicant under this part and on which revenue has been accounted for and for which no credit or refund in respect of such revenue price decrease has been claimed. In the event purchases were made from more than one supplier, the amount of inventory purchased from each supplier shall be determined by application of the first-in, first-out method of accounting.

(ii) All requests for refunds shall be computed on forms satisfactory to Defense Supplies Corporation. The refund shall be computed by multiplying the revenue price decrease by the quantity of inventory referred to in subdivision (i) of this subparagraph.

(iii) For purposes of the refund in respect of a revenue price decrease, persons purchasing petroleum products from an applicant under this part shall be deemed to include persons who made purchases from an intermediate reseller who acquired such products from such applicant. In those instances where a product was purchased from such intermediate reseller the refund may be made by the intermediate reseller and shown on forms satisfactory to Defense Supplies Corporation, submitted by such intermediate reseller to such applicant under this part within 60 days after such revenue price decrease becomes effective. In the event such intermediate reseller purchased from more than one person, the amount of products purchased from each such person shall be determined by application of the first-in, first-out method of accounting, after summarizing all requests for refund made by such intermediate reseller in respect of his own inventory and the inventory of his eligible customers.

(5) The amount of refund which an applicant under this part has made in compliance with the conditions stated in subparagraph (4) of this paragraph may be included, by deduction from revenue on Form T–39, in his application for petroleum compensatory adjustments covering a month not later than the third calendar month following that in which the revenue price decrease became effective.

(6) If, upon completion of audit or other inspection, it is determined that any refund was incorrectly made, the applicant under the part will return to Defense Supplies Corporation upon demand the amount of such refund for which such applicant has obtained reimbursement from Defense Supplies Corporation.

* * * * *

5. Section 7001.5, *Extra transportation and compensable product costs*, paragraph (c), *Method of determining extra transportation costs*, as amended, is further amended to read as set forth below:

(c) *Method of determining extra transportation costs.* (1) Transportation costs, under both the normal and substitute methods of transportation, shall be computed on the basis of the crude, compensable products or miscellaneous products actually moved by the substitute method of transportation, and shall be computed to the first actual delivery point in District One which is common to both methods: *Provided*, That in the case of compensable products other than aviation gasoline the claim, other than for an intra-district movement, shall terminate in any event upon delivery to the first point located in District One outside of the area defined in Schedule D hereof[1] at which such products are unloaded, except when unloaded into "pipe line break-out storage facility" or into a terminal at Panama City, Port St. Joe, or Carabelle, Florida, for through movement to a supply terminal, in which event the claim shall terminate upon delivery to the first such supply terminal into which it is thereafter unloaded. Compensation, if any, for a movement beyond the foregoing points shall be claimed only as a compensable intra-district movement, and movements of products refined, purchased or otherwise acquired in District One shall not be compensable except as provided in § 7001.1 (p) and paragraphs (a) (i) (v), (vi), (vii), (viii) and (ix) of this section.

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[1] Filed with the Division of the Federal Register.

(2) Except as hereinafter provided only costs computed or incurred in respect of the use of the following facilities may be included in an application for a petroleum compensatory adjustment for extra transportation costs. The costs for the use of any facilities shall be computed on the basis prescribed below:

Facilities Used and Rate or Cost To Be Used in Computation
Pipe line (gathering or trunk line): Rate prescribed by or on file with an authorized regulatory body for the movement and material involved, or in the absence of such a rate, then the actual cost of the movement.
Tanker: The maximum voyage charter rate for the material and voyage involved as prescribed by the United States Maritime Commission or the War Shipping Administration.
Tank cars: Freight paid.
Barges, lake steamers, trucks and other transportation facilities: The lower of (i) an amount computed on the basis of the rate prescribed by or on file with an authorized regulatory body for the shipment and material involved, or (ii) the actual cost of the movement: *Provided*, That such rate or cost shall not exceed any applicable ceiling rate: *And provided further*, That Defense Supplies Corporation may deduct from claims amounts included therein which represent that portion of the cost of transportation by motor trucks resulting from increases effected after July 31, 1944 in the applicable published tariffs for such transportation. (Defense Supplies Corporation may request the Office of Price Administration to review increases effected after July 31, 1944 in published tariffs for motor truck transportation and will notify applicants under this part in the event that the Corporation decides, in respect of certain shipments, to limit claims to the motor truck tariffs in effect on July 31, 1944.)

(3) Applications for petroleum compensatory adjustments filed pursuant to this part shall include as a deduction the normal cost of in-transit handling and may include as a compensable item the substitute cost of in-transit handling.

6. Section 7001.5, *Extra transportation and compensable product costs*, paragraph (d), *Exchanges*, is amended to read as set forth below:

(d) *Exchanges.* When products are delivered under an exchange in District One, transportation costs shall be computed as though no exchange were involved, i. e., the cost under both the normal and substitute methods of transportation will be computed to the point in District One where delivery is made under the exchange unless a point which is common to both methods of transportation was reached prior thereto; *Provided*, That products acquired or loaned under an exchange at Buffalo, New York, or Pittsburgh, Pennsylvania, subsequent to March 30, 1944 shall not be considered to have been acquired or loaned under an exchange if replacement of like products is made at Buffalo, New York, or Pittsburgh, Pennsylvania, respectively, within the next succeeding calendar month following the month during which the products were acquired or loaned under the exchange.

This amendment shall become effective as of August 1, 1944; *Provided*, That where an earlier date is mentioned in a provision of this amendment such provision shall be effective from such earlier date; *Provided further*, That all provisions of this amendment which pertain to purchases of compensable products from Defense Supplies Corporation at the eastern termini in District One of the war emergency pipelines system shall be effective from March 1, 1944.

RECONSTRUCTION FINANCE CORPORATION,
GEORGE STONER,
Associate Director,
Office of Defense Supplies.

[F. R. Doc. 45-12936; Filed, July 16, 1945; 11:47 a. m.]

[Rev. Reg. 1, Amdt. 6]

PART 7001—PETROLEUM COMPENSATORY ADJUSTMENTS

Petroleum Compensatory Adjustments Revised Regulation No. 1 of Defense Supplies Corporation, as amended, together with Schedules A, B, C, and E thereof, was further amended by Defense Supplies Corporation by the issuance on February 28, 1945, of the following:

Amendment No. 6 to Petroleum Compensatory Adjustments Revised Regulation No. 1.

Amendment No. 2 to Revised Schedule A.[1]

Amendment No. 1 to Revised Schedule B.[1]

Amendment No. 1 to Schedule C, as revised effective September 1, 1944.[1]

Amendment No. 4 to Schedule E.[1]

1. Section 7001.1, *Definitions*, as amended, is further amended by changing paragraphs (l) (4) and (p) thereof to read as set forth below:

§ 7001.1 *Definitions.* * * *

(l) * * *

(4) In the case of compensable products and miscellaneous products purchased, or acquired under an exchange in District Two or Three, the point at which the compensable products or miscellaneous products imported into District One are delivered to the applicant under the sale or the exchange: *Provided*, That compensable products or miscellaneous products acquired or loaned under an exchange at Helena, Arkansas, Gale, Illinois, or Destrehan or St. Rose, Louisiana, shall not be considered to have been acquired or loaned under an exchange if replacements of like compensable products or miscellaneous products is made at the point where such products were acquired or loaned under the exchange, prior to the end of the next succeeding calendar month following the month during which the compensable products or miscellaneous products were acquired or loaned under the exchange; *Provided further*, That either the compensable products or miscellaneous products acquired at Helena, Arkansas, or the compensable products or miscellaneous products loaned at Helena, Arkansas, were moved through the Project Five pipe line: *And provided*, That the compensable products or miscellaneous products acquired at Gale, Illinois, or Destrehan or St. Rose, Louisiana, and the compensable products or miscellaneous products loaned at Gale, Illinois, or Destrehan or St. Rose, Louisiana, were transported to such points by barge.

* * * * *

(p) "Compensable intra-district movement" means:

(1) A movement of compensable products or naphtha directly from any refinery, barge terminal or pipe line terminal situated in the area defined in Schedule D[1] hereof to any destination in District One outside such area which, in the absence of a shortage of tankers, would normally be supplied by tanker or by a combination of tanker and other methods of transportation and from a point other than such refinery or terminal, and which movement is made by a person who has obtained the prior written approval of the Petroleum Administration for War and the Defense Supplies Corporation designating the origin of such movements and the area or areas into which they are to be made.

(2) A movement of compensable products or naphtha directly from any plant which is a part of a supply terminal in District One situated outside the area defined in Schedule D[1] hereof to (i) any destination within the supply area in which such supply terminal is located, or (ii) to any other destination in District One situated in an area for which the applicant has obtained the prior written approval of the Petroleum Administration for War and the Defense Supplies Corporation designating the supply terminal from which such movements may be made and the area into which they are to be made; provided, in each case, that the destination to which the movement is made, in the absence of a tanker shortage, would normally be supplied by tanker or a combination of tanker and other methods of transportation, and from a point other than such plant.

(3) Any other movement of compensable products or any movement of crude or miscellaneous products made upon the prior written request of the Petroleum Administration for War, which request was approved by Defense Supplies Corporation, from a refinery, terminal or bulk storage plant in District One to a point in District One, which movement would not normally have been made by the applicant in the absence of a shortage of tankers.

* * * * *

2. Section 7001.2, *Persons eligible to apply for petroleum compensatory adjustments*, as amended, is further amended to read as set forth below:

§ 7001.2 *Persons eligible to apply for petroleum compensatory adjustments.* (a) Subject to the provisions of paragraphs (c) and (d) of this section, any person who produces, manufactures, acquires or purchases crude, compensable products or miscellaneous products in District Two or Three and imports the same, by substitute method of transportation, for sale or manufacture of pe-

[1] Filed with the Division of the Federal Register.

troleum products within District One, or who purchases crude or compensable products from Defense Supplies Corporation at the eastern termini in District One of the war emergency pipelines system for sale or manufacture of petroleum products within such district, or who makes a compensable intra-district movement or a special container movement, may file an application for a petroleum compensatory adjustment on account of any claim for extra costs covered by this part.

(b) Subject to the provisions of paragraphs (c) and (d) of this section, any person who, during the twelve months' period ended June 30, 1941, regularly imported compensable products or miscellaneous products for his own consumption within District One, and who imports, by substitute method of transportation, compensable products or miscellaneous products from District Two or Three for his own consumption in District One, shall be eligible to file an application for a petroleum compensatory adjustment on account of any claim for extra costs covered by this part.

(c) No application for a petroleum compensatory adjustment may be filed in respect of any quantity of petroleum or petroleum products imported subsequent to July 31, 1944, in violation of any rules, regulations, orders or directives issued, authorized or approved by the Petroleum Administration for War relating to supply or distribution of petroleum or petroleum products.

(d) No application for a petroleum compensatory adjustment for the month of March 1945, or any subsequent month, will be approved for payment unless the applicant has signed an agreement, satisfactory to Defense Supplies Corporation, to account to Defense Supplies Corporation for revenue.

3. In § 7001.5 *Extra transportation and compensable product costs*, paragraph (a), *Amount of compensatory adjustment*, as amended, is further amended by changing subparagraphs (i), (vi), and (vii) thereof to read as set forth below:

§ 7001.5 *Extra transportation and compensable product costs*—(a) *Amount of compensatory adjustment.* (1) * * *.

(i) In case crude, aviation gasoline or miscellaneous products except asphalt are imported, the excess of (*a*) the cost of transporting crude, aviation gasoline or miscellaneous products from the actual origin to the destination in District One by the substitute method of transportation, plus, in the case of crude transported pursuant to Petroleum Directive 63 (8 F.R. 1068) through the war emergency pipelines system, a sum equal to the difference between the price paid to Defense Supplies Corporation by the applicant for such crude and the weighted average posted field price paid by Defense Supplies Corporation for crude received at Longview, Texas, during the month that crude is delivered to the applicant, over (*b*) the cost of transporting similar crude, aviation gasoline or miscellaneous products from the normal origin to the same destination in District One by the facilities which would have been used under the normal method of transportation, plus, in the case of crude and natural gasoline, the applicable amount shown on Schedule A hereof.[1] In any case where crude, other than crude transported pursuant to Petroleum Directive 63 through the war emergency pipelines system, is purchased away from the well, under the substitute method of transportation, the amount of the transportation costs from the well to the point of purchase to be included in the claim shall not exceed the difference between the price paid for such crude and the prevailing price for such crude at the well as of the date of purchase.

* * * * *

(vi) In the case of a compensable intra-district movement which is made from any supply terminal in District One situated on the pipe line of the Plantation Pipe Line Company, including the Defense Plant Corporation extension to Richmond, Virginia, or the pipe line of the Southeastern Pipe Line Company, the excess of (*a*) the lower of the actual cost to the importer of transporting the compensable products or naphtha from actual origin outside District One to the supply terminal, or the cost of the importer's normal method of transportation for such compensable products or naphtha from normal origin to the supply terminal plus, in the case of natural gasoline only, the applicable amount shown on Schedule A[1] hereof; plus the substitute cost of in-transit handling at the supply terminal; and plus the actual cost incurred by the applicant in transporting the compensable products or naphtha from the supply terminal to destinations; over (*b*) the cost of applicant's normal method of transportation from normal origin to the same destination plus, in the case of natural gasoline only, the applicable amount shown on Schedule A hereof.

(vii) In the case of a compensable intra-district movement defined in § 7001.1 (p) (2) which is made from any supply terminal in District One situated outside the area defined in Schedule D,[1] other than a supply terminal described in subdivision (vi) above, the excess of (*a*) the cost of transporting like compensable products or naphtha to such supply terminal from Port Arthur, Texas, by the normal method of transportation of the importer of such products, or, if refined in District One, of the refiner thereof, plus, in the case of natural gasoline only, the applicable amount shown on Schedule A hereof,[1] plus the substitute cost of in-transit handling at such supply terminal, except that no substitute cost of in-transit handling will be included in respect to handling at any District One refinery of compensable products or naphtha manufactured at such refinery; and plus the actual cost incurred by the applicant in transporting the compensable products or naphtha from such supply terminal to destination; over (*b*) the cost of applicant's normal method of transportation from normal origin to the same destination plus, in the case of natural gasoline only, the applicable amount shown on Schedule A hereof.[1]

* * * * *

4. In § 7001.5 *Extra transportation and compensable product costs*, paragraph (c) *Method of determining extra transportation costs* as amended, is further amended by changing subparagraph (1) thereof to read as set forth below:

(c) *Method of determining extra transportation costs.* (1) Transportation costs, under both the normal and substitute methods of transportation, shall be computed on the basis of the crude, compensable products or miscellaneous products actually moved by the substitute method of transportation, and shall be computed to the first actual delivery point in District One which is common to both methods: *Provided*, That in the case of crude, compensable products or naphtha the claim, other than for an intra-district movement, shall terminate in any event upon delivery to the first point located in District One outside of the area defined in Schedule D[1] hereof at which such products or crude are unloaded, except when unloaded into "pipe line break-out storage facility" or into a terminal at Panama City, Port St. Joe, or Carabelle, Florida, for through movement to a supply terminal, in which event the claim shall terminate upon delivery to the first such supply terminal into which such products or crude are thereafter unloaded. Compensation, if any, for a movement beyond the foregoing points shall be claimed only as a compensable intra-district movement, and movements of crude, compensable products or miscellaneous products refined, purchased or otherwise acquired in District One shall not be compensable except as provided in § 7001.1 (p) and paragraph (a) (1) (v), (vi), (vii), (viii) and (ix) of this section.

* * * * *

The provisions of this amendment which pertain to compensable intra-district movements of crude and the provisions of this amendment which pertain to compensable products or miscellaneous products acquired or loaned under an exchange at Gale, Illinois, or Destrehan or St. Rose, Louisiana, shall be effective from January 1, 1945, and all other provisions of this amendment shall become effective as of March 1, 1945: *Provided*, That costs related to compensable intra-district movements of crude commenced subsequent to December 31, 1944, and prior to March 16, 1945, may be included in claims in accordance with authorizations issued by the Petroleum Administration for War and approved by the Defense Supplies Corporation prior to April 1, 1945: *And provided further*, That compensable costs related to compensable intra-district movements of aviation gasoline or naphtha commenced subsequent to February 28, 1945, and prior to March 16, 1945, may be included in claims regardless of whether written approval thereof is obtained from the

[1] Filed with the Division of the Federal Register.

Petroleum Administration for War and the Defense Supplies Corporation.

RECONSTRUCTION FINANCE CORPORATION,
By GEORGE STONER,
Associate Director,
Office of Defense Supplies.

[F. R. Doc. 45-12937; Filed, July 16, 1945; 11:47 a. m.]

[Rev. Reg. 1, Amdt. 7]

PART 7001—PETROLEUM COMPENSATORY ADJUSTMENTS

Petroleum Compensatory Adjustments Revised Regulation No. 1 of Defense Supplies Corporation, as amended, together with Schedules A, C and E thereof, was further amended by Defense Supplies Corporation by the issuance on May 31, 1945, of the following:

Amendment No. 7 to Petroleum Compensatory Adjustments Revised Regulation No. 1.

Amendment No. 3 to Revised Schedule A.[1]

Amendment No. 2 to Schedule C, as revised effective September 1, 1944.[1]

Amendment No. 5 to Schedule E.[1]

1. Section 7001.1 *Definitions,* as amended, is further amended by changing paragraphs (a) and (c) to read as follows:

§ 7001.1 *Definitions.* * * *

(a) "District One" means the States of Connecticut, Delaware, Florida (except west of the Apalachicola River), Georgia, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, North Carolina, Pennsylvania, Rhode Island, South Carolina, Vermont, Virginia, and West Virginia, and the District of Columbia.

* * * * *

(c) "District Three" means the States of Alabama, Arkansas, Louisiana, Mississippi, New Mexico, Texas, and that portion of the State of Florida west of the Apalachicola River.

* * * * *

2. Section 7001.5 *Extra transportation and compensable product costs,* as amended, is further amended by adding the following new subparagraph (3) (iii) to paragraph (a) and by changing subparagraph (1) of paragraph (c) thereof to read as set forth below:

§ 7001.5 *Extra transportation and compensable product costs*—(a) *Amount of compensatory adjustment.* * * *

(3) * * *.

(iii) When products are delivered or received by an applicant under an exchange, barter or borrow-and-loan arrangement with a non-applicant, such deliveries or receipts shall, for the purposes of computing revenue, be considered as sales or purchases respectively; *Provided, however,* That receipts from or deliveries to a non-applicant on and after June 1, 1945, which, on a first-in-first-out basis, are determined to be in repayment of an open balance on June 1, 1945, of an exchange, barter or borrow-and-loan arrangement with a non-applicant, shall be exempt from this subdivision.

* * * * *

(c) *Method of determining extra transportation costs.* (1) Transportation costs, under both the normal and substitute methods of transportation, shall be computed on the basis of the crude, compensable products or miscellaneous products actually moved by the substitute method of transportation, and shall be computed to the first actual delivery point in District One which is common to both methods: *Provided,* That in the case of crude, compensable products or naphtha the claim, other than for an intra-district movement, shall terminate in any event upon delivery to the first point located in District One outside of the area defined in Schedule D hereof at which such products or crude are unloaded, except when unloaded into "pipe line break-out storage facility" or into a terminal at Carabelle, Florida, for through movement to a Supply Terminal, in which event the claim shall terminate upon delivery to the first such supply terminal into which such products or crude are thereafter unloaded. Compensation, if any, for a movement beyond the foregoing points shall be claimed only as a compensable intra-district movement, and movements of crude, compensable products or miscellaneous products refined, purchased or otherwise acquired in District One shall not be compensable except as provided in § 7001.1 (p) and paragraph (a) (1) (v), (vi), (vii), (viii), and (ix) of this section.

* * * * *

The foregoing amendment shall become effective as of June 1, 1945.

RECONSTRUCTION FINANCE CORPORATION,
GEORGE STONER,
Associate Director,
Office of Defense Supplies.

[F. R. Doc. 45-12938; Filed, July 16, 1945; 11:47 a. m.]

Chapter XXIII—Surplus Property Board

[SPB Reg. 2, Amdt. 1]

PART 8302—PRIORITIES OF GOVERNMENT AGENCIES AND STATE OR LOCAL GOVERNMENTS

Surplus Property Board Regulation 2, April 24, 1945, entitled "Priorities of Government Agencies and State or Local Governments" (10 F.R. 5104) is hereby amended by adding at the end of § 8302.5 (b) the following new subparagraph (5):

(5) When the cost (estimated if not known) of all substantially similar items of such property in the possession of the disposal agency at any one location at any one time does not exceed $300.

This amendment shall become effective immediately.

SURPLUS PROPERTY BOARD,
By A. E. HOWSE,
Administrator.

JULY 13, 1945.

[F. R. Doc. 45-12994; Filed, July 17, 1945; 11:33 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

Appendix—Public Land Orders

[Public Land Order 287]

CALIFORNIA

REVOKING IN PART EXECUTIVE ORDER 8865 AND OPENING LANDS UNDER APPLICABLE LAWS

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and to the act of April 23, 1932, 47 Stat. 136, it is ordered as follows:

Executive Order No. 8865 of August 21, 1941, withdrawing public lands for the use of the War Department for combat firing ranges and maneuver purposes, is hereby revoked so far as it affects the following-described lands:

SAN BERNARDINO MERIDIAN

T. 14 S., R. 12 E.,
Secs. 20, 21, 28, and 29.
The areas described aggregate 2,560 acres.

The jurisdiction over and use of such lands granted to the War Department by Executive Order No. 8865 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior, under the order of October 19, 1920, of the Secretary of the Interior, withdrawing the lands for reclamation purposes under the provisions of the act of June 17, 1902, 32 Stat. 388.

This order shall not otherwise become effective to change the status of the lands until 10:00 a. m. on the 63d day from the date on which it is signed, at which time the lands, subject to valid existing rights and the provisions of the then existing withdrawals, shall become subject to the laws applicable to lands affected by such withdrawals, and to location, entry, and patent, under the general mining laws subject to the terms of the following stipulations and to the regulations contained in § 185.36 of Title 43 of the Code of Federal Regulations (Circular No. 1275, June 22, 1932, 53 I.D. 706):

In carrying on the mining and/or milling operations contemplated hereunder locators will, by means of substantial dikes or other adequate structures, confine all tailings, debris and harmful chemicals in such a manner that the same shall not be carried beyond the herein described lands by storm waters or otherwise.

There is reserved to the United States, its successors and assigns the prior right to use any of the lands herein described to construct, operate, and maintain dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, and appurtenant irrigation structures, without any payment made by the United States or its successors for such right, with the agreement on the part of the Locator that if the construction of any or all of such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over, or upon said lands should be made more expensive by reason of the existence of improvements or workings of the Locator thereon, such additional expense is to be estimated by the Secretary of the Interior, whose estimate is to be final and binding upon the parties hereto, and

[1] Filed with the Division of the Federal Register.

that within thirty days after demand is made upon the Locator for payment of any such sums, the Locator will make payment thereof to the United States or its successors constructing such dams, dikes, reservoirs, canals, wasteways, laterals, ditches, telephone and telegraph lines, electric transmission lines, roadways, or appurtenant irrigation structures across, over, or upon said lands. The Locator further agrees that the United States, its officers, agents, and employees and its successors and assigns shall not be held liable for any damage to the improvements or workings of the Locator resulting from the construction, operation, and maintenance of any of the works hereinabove enumerated. Nothing contained in this paragraph shall be construed as in any manner limiting other reservations in favor of the Locator. When executed by the Locator, these stipulations shall be binding upon the Locator and his heirs, successors, and assigns.

The foregoing stipulations shall be executed in favor of the United States by intending locators, recorded in the county records, and filed in the District Land Office at Los Angeles, California, before locations are made, and they shall be incorporated in any patents issued on such locations.

Any applications shall be filed in the District Land Office at Los Angeles, California, and shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), to the extent that such regulations are applicable.

ABE FORTAS,
Acting Secretary of the Interior.

JULY 8, 1945.

[F. R. Doc. 45-12961; Filed, July 17, 1945; 9:44 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Order 107-A]

PART 3—RULES GOVERNING STANDARD AND HIGH-FREQUENCY BROADCAST STATIONS

CHANGES IN METHOD OR METHODS OF DETERMINING CERTAIN OPERATING CONSTANTS OF STANDARD BROADCAST STATIONS

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 10th day of July 1945;

Whereas the Commission on November 6, 1942, at the request of the Board of War Communications adopted Order No. 107 suspending the provisions of § 3.52 of the Commission's rules and regulations and requiring the readjustment of standard broadcast transmitters by decreasing the radiated power by one decibel in order to prolong the life of the transmitting equipment, and

It now appearing that the War Production Board has advised that repair parts for transmitters are now generally available and that no difficulty will be encountered in restoring transmitters to full power operation, and

It further appearing that the operation of standard broadcast stations with full power, is in the public interest, and that an opportunity should be afforded for making the necessary readjustments and tests to return to normal operating practices.

Now, therefore, it is hereby ordered: That on and after September 1, 1945, at the option of the licensee, transmitting operations may be conducted with full operating power during daytime hours only, and that on and after October 1, 1945 Order No. 107 shall be revoked, and all licensees shall be required to operate in accordance with the provisions of § 3.52 of the rules and regulations.

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 45-12968; Filed, July 17, 1945; 10:14 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter II—Office of Defense Transportation

[Administrative Order ODT 7A]

PART 503—ADMINISTRATION

DELEGATION OF AUTHORITY, RAILWAY TRANSPORT DEPARTMENT

Pursuant to Executive Order 8989, as amended, it is hereby ordered, that:

§ 503.210 *Appointment of special representative.* Mr. J. J. Kelley, Jr., Manager, Military Transportation Section, War Department, Pentagon Building, Washington, D. C., is hereby appointed special representative of the Railway Transport Department, Office of Defense Transportation, with authority, subject to my general supervision and right of revocation in any given case:

(a) To direct the movement over the lines of any carrier by railroad, of any special freight train the operation of which has been authorized by a special permit issued by said J. J. Kelley, Jr., under the provisions of Revised Service Order No. 151 issued by the Interstate Commerce Commission on July 10, 1945, on the application of a responsible official or officer of the Department of War, the Department of the Navy, the Marine Corps, or the Coast Guard, of the United States;

(b) To direct the movement over the lines of any carrier by railroad, of any troop train or passenger cars containing troops or military personnel, on the application of a responsible official or officer of the Department of War, the Department of the Navy, the Marine Corps, or the Coast Guard, of the United States; and

(c) To furnish information concerning the operation of any such special freight trains, troop trains, and railway cars to such officials or employees of the Office of Defense Transportation at such times and in such form and manner as I may hereafter direct.

This Administrative Order ODT 7A shall become effective on July 17, 1945.

Administrative Order ODT 7 (8 F.R. 12447), is hereby revoked as of the effective date of this Administrative Order ODT 7A.

(E.O. 8989, 6 F.R. 6725 and 8 F.R. 14183)

Issued at Washington, D. C., this 17th day of July, 1945.

J. M. JOHNSON,
Director,
Office of Defense Transportation.

[F. R. Doc. 45-12940; Filed, July 16, 1945; 2:26 p. m.]

[Administrative Order ODT 6B, Amdt. 8]

PART 503—ADMINISTRATION

ESTABLISHMENT OF REGIONS, DISTRICTS, AND FIELD OFFICES OF HIGHWAY TRANSPORT DEPARTMENT

Pursuant to Executive Orders 8989, as amended, and 9156,

It is hereby ordered, That Appendix 2 of Administrative Order ODT 6B, as amended (9 F.R. 12289, 13069; 10 F.R. 525, 1940, 3139, 5119, 7197, 8561), be, and it hereby is, further amended in the following particulars:

(1) Under the subtitle "Region 6" thereof the matter opposite "*Wisconsin*" is amended to read as follows:

Wisconsin. District offices: Green Bay, La Crosse, and Milwaukee. Field office: Madison.

(2) Under the subtitle "Region 6" thereof the matter opposite "*Illinois*" is amended to read as follows:

Illinois. District offices: Chicago, Peoria, and Springfield. Field office: Cairo.

Paragraph (1) of this Amendment 8 to Administrative Order ODT 6B shall be retroactive to be effective as of July 1, 1945. Paragraph (2) of this Amendment 8 to Administrative Order ODT 6B shall become effective July 15, 1945.

(E.O. 8989, as amended, 6 F.R. 6725, 8 F.R. 14183; E.O. 9156, 7 F.R. 3349)

Issued at Washington, D. C., this 14th day of July 1945.

J. M. JOHNSON,
Director,
Office of Defense Transportation.

[F. R. Doc. 45-12959; Filed, July 16, 1945; 4:30 p. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Bureau of Mines.

HOWARD COAL CO.

ORDER DETERMINING VIOLATIONS AND IMPOSING CONDITIONS FOR SUSPENSION OF REVOCATION

In the matter of licensee J. W. Howard, Howard Coal Company, Box 610, Elkins, W. Va. Proceedings for revocation of license.

Based upon the records in this matter, including your answer, I make the following findings of fact:

1. On June 8, 1945, a specification of charges against you setting forth violations of which you were accused under

the Federal Explosives Act (55 Stat. 863), as amended, and the regulations pursuant thereto, was mailed to you.

2. Your answer dated June 21, 1945, has been received and considered. You did not request an oral hearing.

3. You have admitted the charges against you. The charges against you are true.

4. Assurances given to me indicate the likelihood that hereafter you will comply with the act and the regulations if your license is not revoked.

Now, therefore, by virtue of the authority vested in me by the Federal Explosives Act and the regulations thereunder, I hereby determine:

That you have violated the Federal Explosives Act and the regulations pursuant thereto, and I hereby order:

That the present license revocation proceedings under the Federal Explosives Act are hereby suspended as long as you continue to comply scrupulously with the requirements of the act and the regulations thereunder.

This order shall be published in the FEDERAL REGISTER.

Dated at Washington, D. C., this 12th day of July 1945.

R. R. SAYERS,
Director, Bureau of Mines.

[F. R. Doc. 45-12962; Filed, July 17, 1945; 9:44 a. m.]

DEPARTMENT OF AGRICULTURE.

Commodity Credit Corporation.

CHIEF OF PEANUT SECTION, OILSEEDS DIVISION

DELEGATION OF AUTHORITY

Pursuant to the provisions of War Food Order No. 130 issued on May 14, 1945 (10 F.R. 5676) and to effectuate the purposes of such order:

W. T. Parker, Chief, Peanut Section, Oilseeds Division of the Commodity Credit Corporation, is hereby designated and empowered, within such limits and in accordance with such rules as may be prescribed or approved from time to time by the Director of Basic Commodities, to authorize the purchase, cleaning, shelling, crushing, and otherwise changing of farmers' stock peanuts from their natural state by such persons and in such quantities as he may deem proper, and, further, to exercise and perform all the powers, functions, and duties conferred or imposed upon the Director of Basic Commodities by paragraphs (f) and (i) of such order.

Mr. Parker shall be assisted in such functions by such persons within the Department of Agriculture as he may designate.

(E.O. 9280, 7 F.R. 10179; E.O. 9322, 8 F.R. 3807; E.O. 9334, 8 F.R. 5423; E.O. 9392, 8 F.R. 14783; War Food Order No. 130, 10 F.R. 5676)

Issued this 16th day of July 1945.

[SEAL] C. C. FARRINGTON,
Director of Basic Commodities.

[F. R. Doc. 45-12971; Filed, July 17, 1945; 11:06 a. m.]

DEPARTMENT OF LABOR.

Office of the Secretary.

[WLD 90]

FILM PICKUP & THEATRE SERVICE CO.

FINDINGS AS TO CONTRACTS IN PROSECUTION OF WAR

In the matter of Film Pickup & Theatre Service Company, Minneapolis, Minnesota; Case No. S-2345.

Pursuant to section 2 (b) (3) of the War Labor Disputes Act (Pub. No. 89, 78th Cong., 1st sess.) and the Directive of the President dated August 10, 1943, published in the FEDERAL REGISTER August 14, 1943, and

Having been advised of the existence of a labor dispute involving Film Pickup & Theatre Service Company, Minneapolis, Minnesota,

I find that the motor vehicle transportation of bakery goods to retail distributors by Film Pickup & Theatre Service Company, Minneapolis, Minnesota, pursuant to contracts, whether oral or written, is contracted for in the prosecution of the war within the meaning of section 2 (b) (3) of the War Labor Disputes Act.

Signed at Washington, D. C., this 16th day of July 1945.

L. B. SCHWELLENBACH,
Secretary of Labor.

[F. R. Doc. 45-12980; Filed, July 17, 1945; 11:23 a. m.]

[WLD 94]

GENERAL BUILDERS ASSN., ET AL.

FINDINGS AS TO CONTRACTS IN PROSECUTION OF WAR

In the matter of General Builders Association, et al., Detroit, Michigan, Case No. S-2258.

Pursuant to section 2 (b) (3) of the War Labor Disputes Act (Pub. No. 89, 78th Cong., 1st sess.) and the Directive of the President dated August 10, 1943, published in the FEDERAL REGISTER August 14, 1943, and

Having been advised of the existence of a labor dispute involving the members of the General Builders Association and the Carpenter Contractors Association, Detroit, Michigan,

I find that the construction, reconstruction or repair of buildings or other works or facilities, other than for ordinary residential purposes, by any member of the General Builders Association or the Carpenters Contractors Association, Detroit, Michigan, pursuant to contract, oral or written, is contracted for in the prosecution of the war within the meaning of section 2 (b) (3) of the War Labor Disputes Act.

Signed at Washington, D. C. this 16th day of July 1945.

L. B. SCHWELLENBACH,
Secretary of Labor.

[F. R. Doc. 45-12981; Filed, July 17, 1945; 11:23 a. m.]

FEDERAL COMMUNICATIONS COMMISSION.

[Docket Nos. 6569, 6539]

PRESS WIRELESS, INC.

ORDER SEVERING PROCEEDINGS, DIRECTING APPEARANCE TO SHOW CAUSE ON STATED ISSUES, SETTING DATE FOR FILING ANSWER, AND SETTING DATE FOR HEARING

In the matter of Telegraph Communication Service between the United States and Foreign Points. Docket No. 6569.

In the matter of Press Wireless, Inc. Rates and charges for communication services. Docket No. 6539.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 10th day of July 1945;

The Commission, having under consideration its previous orders herein; and having also under consideration the continued high ratios of operating income to net book cost of operated plant and equipment based on the earnings reported to the Commission by Press Wireless, Inc., as shown in Table A, attached to this order; and

It appearing, that in view of such continued high rate of earnings, the rates and charges of Press Wireless, Inc., may be unjust and unreasonable; and that a reduction in such rates should be promptly considered; and

It further appearing, that the principal United States telegraph carriers providing telegraph service between the United States and foreign points have recently effected substantial overall reductions in rates and charges for such service in the commercial and government classifications but that no reductions have been made in the rates for service in the press classifications;

It is ordered, That the proceedings heretofore instituted in Docket No. 6539 be, and they are hereby severed from the proceedings instituted in Docket No. 6569; and that the proceedings in Docket No. 6539 shall proceed separately;

It is further ordered, That Press Wireless, Inc. be, and it is hereby directed to appear and show cause, under oath, why, upon the basis of the data set forth in Table A attached hereto, (1) the Commission should not find that the existing rates and charges of Press Wireless, Inc. for and in connection with communication service, are, or will be, unjust or unreasonable; and (2) an immediate interim reduction in such rates and charges should not be ordered to be made, pending conclusion of the proceedings of investigation;

It is further ordered, That respondent, Press Wireless, Inc., shall file with this Commission, on or before the 1st day of August 1945, its answer to the above show-cause provisions of this order, verified by a person or persons having personal knowledge of the facts alleged therein;

It is further ordered, That a hearing as to the matters in Docket No. 6539 shall be held beginning at 10:00 a. m., on the 22d day of August 1945, at the offices of the Commission in Washington, D. C.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

TABLE A—PRESS WIRELESS, INC.

Approximate ratios of operating income to net book cost of operated plant, years 1938–44, and 4 months ended April 30, 1945

	1938	1939	1940	1941	1942	1943	1944	4 months ending Apr. 30, 1945
Book cost of operated plant at end of period	$701,042	$730,185	$835,147	$875,266	$852,046	$970,386	$1,083,147	
Less: Allowance for depreciation	258,159	318,137	385,332	334,189	320,938	389,691	462,529	
Net book cost of operated plant	442,883	412,048	449,815	541,077	531,108	580,695	620,618	
Operating income:								
Operating revenues	482,490	564,918	857,500	1,134,734	1,449,587	2,026,578	2,664,399	1,247,020
Operating revenue deductions	456,672	543,215	676,169	952,633	1,063,949	1,493,787	2,190,511	802,033
Net operating revenue	25,818	21,703	181,331	182,101	385,638	532,791	473,888	444,987
Other communications income					405	399		
Operating income	25,818	21,703	181,331	182,101	386,043	533,190	473,888	444,987
Deduct: Taxes on net income (other than Federal income and excess profits taxes)			9,239	10,000	2,000			
Adjusted operating income (before Federal income and excess profits taxes)	25,818	21,703	172,092	172,101	384,043	533,190	473,888	444,987
Ratio of operating income (before Federal income and excess profits taxes) to net book cost of operated plant (percent)	5.8	5.3	38.3	31.8	72.3	91.8	76.4	[1] 215.1

[1] On an annual basis. Based on 1944 net book cost of operated plant.

Source: Annual and monthly reports to F. C. C.

[F. R. Doc. 45–12963; Filed, July 17, 1945; 10:14 a. m.]

[Docket No. 6768]

FM BROADCASTING

ORDER SETTING FOR HEARING SUGGESTED REGULATIONS

In the matter of promulgation of rules and regulations and standards of good engineering practice for FM broadcasting other than non-commercial educational broadcast service.

Whereas, the Commission on June 27, 1945, issued its final report allocating frequencies for FM broadcasting;

Whereas, it is desirable that rules and regulations and standards of good engineering practice concerning FM broadcasting should be promulgated as soon as possible; and

Whereas, the Commission has heretofore called an informal engineering conference for the purpose of discussing technical matters involved in standards of good engineering practice for FM broadcasting.

Now, therefore, *It is ordered*, This 10th day of July 1945, that a hearing be held before the Commission en banc beginning at 10:30 a. m., July 23, 1945, for the purpose of considering the promulgation of rules and regulations and standards of good engineering practice concerning FM broadcasting. Persons desiring to appear at that hearing should file an appearance with the Commission on or before July 19 indicating the name of the person who will appear, the subject matter concerning which he will testify, and the length of time desired. Any person desiring to file a brief should file 25 copies with the Commission on or before July 19, 1945.

In order to give scope and direction to the hearing, set forth below is the substance of suggested rules and regulations concerning the principal subjects to be considered by the Commission. Persons appearing at the hearing should address themselves to these suggested regulations and should indicate with particularity any objection they have to the regulations and any specific suggestions they have for any change in, or alternative to, regulations.

The suggested regulations are as follows:

(1) *Minimum operating schedule.* All FM stations will be licensed for unlimited time operation and initially will be required to operate a minimum of 6 hours per day.

(2) *Program duplication.* FM stations shall devote a minimum of one hour each day during the period 8:00 a. m. to 6:00 p. m. and one hour each day during the period 6 p. m. to 11:00 p. m. to programs not duplicated simultaneously in the same area by any standard broadcast station or by any FM station. During these two one-hour periods a service utilizing the full fidelity capability of the FM station shall be rendered.

(3) *Multiple ownership.* (a) No person (including all persons under common control)[1] shall, directly or indirectly, own, operate, or control more than one FM broadcast station that would serve substantially the same service area as another FM broadcast station owned, operated, or controlled by such person.

(b) No person (including all persons under common control) shall, directly or indirectly, own, operate, or control more than one FM broadcast station, except upon a showing (1) that such ownership, operation, or control would foster competition among FM broadcast stations or provide an FM broadcasting service distinct and separate from existing services and (2) that such ownership, operation, or control would not result in the concentration of control of FM broadcasting facilities in a manner inconsistent with public interest, convenience, or necessity: *Provided, however,* That the Commission will consider the ownership, operation, or control of more than six FM broadcast stations to constitute the concentration of control of FM broadcasting facilities in a manner inconsistent with public interest, convenience, or necessity.

(4) *Ownership of FM stations by licensees of AM stations.* Licensees of AM stations on appropriate application may be permitted to operate FM stations. Comment is invited whether the Commission should adopt a regulation that in the future when FM becomes an established competitive service with AM, no person or persons under common control will be permitted to own, operate or control, directly or indirectly, more than one AM or FM station serving substantially the same service area.

(5) *Network regulations.* Regulations 3.101–3.108 which are presently applicable to standard broadcast stations only shall also be applicable to FM stations.

(6) *Use of common antenna sites.* Wherever it is shown that the antenna site of a licensee or applicant is peculiarly suitable for FM broadcasting in a particular area and that there is no other comparable site available in the area, such licensee or applicant as a condition of being issued a license or renewal of license shall be required to make the use of his antenna site available to other FM licensees upon the payment of a reasonable rental and upon a showing that the shared use of the antenna site will permit satisfactory operation of all stations concerned.

(7) *Booster stations.* Comment is requested concerning the extent to which the Commission should authorize or require the use of booster stations.

(8) *Reservation of 20 channels.* The Commission indicated in its report of May 25, 1945, that 20 FM channels may be reserved from assignment at the present time to be licensed in the future in accordance with rules and regulations subsequently to be promulgated. Comment is invited concerning the rules and regulations which should be adopted in this matter.

(9) *Facsimile broadcasting and multiplex transmission.* Transmission of simplex facsimile on FM channels in accordance with the Commission's Standards of Good Engineering Practice on facsimile may be permitted, upon application to the Commission, during hours not required to be devoted to FM aural broadcasting. The Commission may grant experimental authority to an FM station for the multiplex transmission of facsimile and aural broadcast programs: *Provided,* That the facsimilie transmission is incidental to the aural broadcast, does not reduce the quality of the aural program, and that a filter or other additional equipment is not required for receivers not equipped for facsimile service.

(10) *Allocation plan.* The 70 channels available for FM broadcasting shall be divided as follows:

(a) *Community stations.* A community station is designed to render service to small cities or to communities located in a metropolitan district or adjacent to a metropolitan district. Community stations will be limited to a maximum radiated power of 50 watts and

[1] The word "control" as used herein is not limited to majority stock ownership, but includes actual working control in whatever manner exercised.

a maximum antenna height of 250 feet over the average height of the 1000 uv/m contour. Upon a proper showing that an antenna height in excess of 250 feet is necessary, authorization will be issued for such higher antenna but the Commission may in such cases require a reduction in radiated power. The 1000 uv/m contour of a community station, which is located in a community within a metropolitan district, shall not include the business district of the principal city. A minimum separation of 50 miles will be provided in the case of community stations on the same channel and a minimum of 25 miles on adjacent channels. Insofar as possible, community stations will be allocated on the basis of multiples of these distances with the maximum separation possible. The main studio shall be located in the city or town served and transmitters shall be located as near the center of the city as practicable. The following 10 frequencies will be allocated for these community stations:

Megacycles:

92.1	92.9	93.5
92.3	93.1	93.7
92.5	93.3	93.9[1]
92.7		

(b) *Metropolitan stations.* Metropolitan stations are designed to render service to a metropolitan district or to a principal city, and to the rural area surrounding such metropolitan district or principal city, and to the rural area surropolitan stations shall be located in the principal city served. Metropolitan stations must place a 20 uv/m signal on the outer boundary of the service area determined for the district or area in question. The first service area will be determined by the Commission for the first station licensee in the area in question, and all additional stations must serve the same area as the first station unless an adequate showing is made that a different area is proper, in which case all stations will be required to adjust their service areas accordingly. In determining service areas, the Commission will give consideration to trade areas,[2] terrain, population distribution, economics and other pertinent factors.

In addition to the foregoing service area for metropolitan stations, the Commission will, upon appropriate application, designate extended service areas which metropolitan stations may be authorized to serve. In determining the boundaries of these extended service areas a showing will be required that the service area added does not contain any metropolitan district or principal city and is predominantly rural in character; that no intereference will be caused to the service area of existing stations or that if such interference will result the need for service of the population proposed to be served outweights the needs of those who will lose service; and that competition will not be impaired by a grant of the application. Other licensees of metropolitan stations in the same area will not be required to serve this extended service area, but will be required to serve the entire extended service area if they desire to serve any part of it.

The frequencies which will be available for assignment to metropolitan stations are as follows:

Megacycles:

94.1	96.1	98.1	100.1	102.1
94.3	96.3	98.3	100.3	102.3
94.5	96.5	98.5	100.5	102.5
94.7	96.7	98.7	100.7	102.7
94.9	96.9	98.9	100.9	102.9
95.1	97.1	99.1	101.1	103.1
95.3	97.3	99.3	101.3	103.3
95.5	97.5	99.5	101.5	103.5
95.7	97.7	99.7	101.7	103.7
95.9	97.9	99.9	101.9	103.9

(c) *Rural stations.* A rural station is designed to render service to wide rural areas[3] which cannot be served by a metropolitan station. Rural stations shall not be permitted to render a signal of 500 uv/m or better in any metropolitan district unless a proper showing is made to the Commission that due to considerations of terrain it will be possible by permitting a signal in excess of 500 uv/m to a metropolitan district to render more extended service to unserved rural areas than would otherwise be possible. In such situations rural stations may render a signal not in excess of 1,000 uv/m to a metropolitan district. In no case will rural stations be permitted to render a signal greater than 500 uv/m to more than one metropolitan district. Directional antennas may be used by rural stations to increase service to rural areas and to reduce service in metropolitan areas.

The frequencies available for rural stations are as follows:

Megacycles:

104.1	104.9	105.5
104.3	105.1	105.7
104.5	105.3	105.9
104.7		

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 45-12965; Filed, July 17, 1945; 10:14 a. m.]

[Docket No. 6768]

FM BROADCASTING

ORDER CONTINUING HEARING AND EXTENDING TIME FOR FILING APPEARANCES AND BRIEFS

In the matter of promulgation of rules and regulations and standards of good engineering practice for FM Broadcasting other than non-commercial educational broadcast service.

Whereas, the Commission on July 10, 1945, adopted an order specifying that a hearing be held before the Commission en banc beginning at 10:30 a. m., July 23, 1945, for the purpose of considering the promulgation of rules and regulations and standards of good engineering practice concerning FM broadcasting (Docket No. 6768), that appearances and briefs be filed on or before July 19, 1945; and

Whereas, requests have been made to the Commission by various parties for extension of such times;

Now, therefore, *It is ordered*, This 12th day of July, 1945, that the hearing in this matter be, and it is hereby, continued to 10:30 a. m., July 30, 1945, and that the time for filing appearances and briefs be extended to July 26, 1945.

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 45-12964; Filed, July 17, 1945; 10:14 a. m.]

[Docket No. 6769]

MARTINSBURG BROADCASTING CO.

ORDER DESIGNATING APPLICATION FOR CONSOLIDATED HEARING AND STATING ISSUES

In re application of C. M. Zinn and G. Leslie Golliday, d/b as Martinsburg Broadcasting Company, Martinsburg, West Virginia, for construction permit, File No. B2-P-3859.

At a session of the Federal Communications Commission, held at its offices in Washington, D. C., on the 10th day of July 1945;

The Commission having under consideration an application for construction permit filed by C. M. Zinn and G. Leslie Golliday, d/b as Martinsburg Broadcasting Company, for a new standard broadcast station at Martinsburg, West Virginia (File No. B2-P-3849);

It is ordered, That this application be designated for hearing in a consolidated proceeding with the application for construction permit (File No. B2-P-3865) of Richard Field Lewis, Jr., and Grant Pollock, a partnership, d/b as Berkeley Broadcasting Company, to be heard in Washington, D. C., on the 23d day of August 1945, upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to construct and operate the proposed station.

2. To determine the areas and populations which would gain primary broadcast service through the operation of the proposed station and what other broadcast services are available to those areas and populations.

3. To determine the type of program service proposed to be rendered by the applicant and whether it will meet the requirements of the populations and areas proposed to be served.

4. To determine the qualifications and character of the personnel who will be employed in the operation of the station.

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[1] This frequency will not be assigned within metropolitan districts or within communities near a principal city.

[2] There are several current and recognized authorities on retail trading areas or consumer trading areas from which the applicant may prepare its showing and to which the Commission will give consideration in making its determination. Among these recognized authorities are the following: J. Walter Thompson (Retail Shopping Areas), Hearst Magazines, Inc. (Consumer Trading Areas), Rand McNally Map Co. (Trading Areas), and Hagstrom Map Co.'s Four Color Retail Trading Area Map.

[3] "Rural area" means all land area outside incorporated towns or cities with population greater than 2,500 and where the density of population is less than 150 per square mile. Incorporated towns or cities with population from 2,500 to 5,000 without an FM broadcast station and not adjacent to larger cities may be considered rural areas.

5. To determine whether the granting of this application would be consistent with the Policy announced by the Commission in its supplemental statement of policy of January 16, 1945.

6. To determine whether in view of the evidence adduced at the hearing on the foregoing issues, public interest, convenience and necessity would be served by a grant of this application, the application (File No. B2–P–3865) of Richard Field Lewis, Jr., and Grant Pollock, a partnership, d/b as Berkeley Broadcasting Company, or either of them.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 45–12966; Filed, July 17, 1945; 10:15 a. m.]

[Docket No. 6770]

BERKELEY BROADCASTING CO.

ORDER DESIGNATING APPLICATION FOR CONSOLIDATED HEARING AND STATING ISSUES

In re application of Richard Field Lewis, Jr., and Grant Pollock, a partnership, d/b as Berkeley Broadcasting Company; Martinsburg, West Virginia; for construction permit, File No. B2–P–3865.

At a session of the Federal Communications Commission, held at its offices in Washington, D. C., on the 10th day of July 1945;

The Commission having under consideration an application for construction permit filed by Richard Field Lewis, Jr., and Grant Pollock, a partnership, d/b as Berkeley Broadcasting Company, for a new standard broadcast station at Martinsburg, West Virginia (File No. B2–P–3865);

It is ordered, That this application be designated for hearing in consolidated proceeding with the application for construction permit (File No. B2–P–3859) of C. M. Zinn and G. Leslie Golliday, d/b as Martinsburg Broadcasting Company, to be heard in Washington, D. C., on the 23d day of August 1945, upon the following issues:

1. To determine the legal, technical, financial and other qualifications of the applicant to construct and operate the proposed station.

2. To determine the areas and populations which would gain primary broadcast service through the operation of the proposed station and what other broadcast services are available to those areas and populations.

3. To determine the type of program service proposed to be rendered by the applicant and whether it will meet the requirements of the populations and areas proposed to be served.

4. To determine the qualifications and character of the personnel who will be employed in the operation of the station.

5. To determine whether the granting of this application would be consistent with the policy announced by the Commission in its supplemental statement of policy of January 16, 1945.

6. To determine whether in view of the evidence adduced at the hearing on the foregoing issues, public interest, convenience and necessity would be served by the grant of this application, the application (File No. B2–P–3859) of C. M. Zinn and G. Leslie Golliday, d/b as Martinsburg Broadcasting Company, or either of them.

By the Commission.

[SEAL] T. J. SLOWIE, *Secretary.*

[F. R. Doc. 45–12967; Filed, July 17, 1945; 10:14 a. m.]

OFFICE OF DEFENSE TRANSPORTATION.

[Supp. Order ODT 3, Rev. 728]

CHICAGO, ILL., AND WALWORTH, WIS.

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 3, Revised, as amended (7 F.R. 5445, 6689, 7694; 8 F.R. 4660, 14582; 9 F.R. 2793, 3264, 3357, 6778), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to assure maximum utilization of the facilities, services, and equipment, and to conserve and providently utilize vital equipment, materials, and supplies, of the carriers, and to provide for the prompt and continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war; *It is hereby ordered,* That:

1. The plan for joint action above referred to is hereby approved and the carriers are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers forthwith shall file a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or supplements to filed tariffs, setting forth any changes in rates, charges, operations, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs or supplements to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be kept available for examination and inspection at all reasonable times by accredited representatives of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective July 21, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 17th day of July 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

[1] Filed as part of the original document.

APPENDIX 1

Liberty Trucking Company, Chicago, Ill.
C. J. Downs, doing business as Downs Motor Express, McHenry, Illinois.

[F. R. Doc. 45-12941; Filed, July 16, 1945; 2:26 p. m.]

[Supp. Order ODT 6A-142]

NEW YORK METROPOLITAN AREA

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 6A, as amended (8 F.R. 8757, 14582; 9 F.R. 2794), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to conserve and providently utilize vital transportation equipment, materials, and supplies; and to provide for the continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war; *It is hereby ordered*, That:

1. The plan for joint action above referred to is hereby approved and the persons named in Appendix 1 hereof are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers shall file forthwith a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or schedules, or appropriate supplements to filed tariffs or schedules, setting forth any changes in rates, charges, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs, schedules, or supplements, to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper, or to exempt or release any participant in the plan from the requirements of any order of the Office of Defense Transportation now or hereafter in effect. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be available for examination and inspection at all reasonable times by any accredited representative of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective July 21, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 17th day of July 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

APPENDIX 1

Central Trucking Co., Inc., New York, N. Y.
Herman Lichtman, doing business as Lichtman's Express, Bayonne, N. J.
Louis Miller, doing business as Hide & Leather Trucking Co., New York, N. Y.

[F. R. Doc. 45-12943; Filed, July 16, 1945; 2:26 p. m.]

[Supp. Order ODT 6A-143]

NEW YORK

COORDINATED OPERATIONS OF CERTAIN CARRIERS

Upon consideration of a plan for joint action filed with the Office of Defense Transportation by the persons named in Appendix 1 hereof to facilitate compliance with the requirements and purposes of General Order ODT 6A, as amended (8 F.R. 8757, 14582; 9 F.R. 2794), a copy of which plan is attached hereto as Appendix 2,[1] and

It appearing that the proposed coordination of operations is necessary in order to conserve and providently utilize vital transportation equipment, materials, and supplies; and to provide for the continuous movement of necessary traffic, the attainment of which purposes is essential to the successful prosecution of the war; *It is hereby ordered*, That:

1. The plan for joint action above referred to is hereby approved and the persons named in Appendix 1 hereof are directed to put the plan in operation forthwith, subject to the following provisions, which shall supersede any provisions of such plan that are in conflict therewith.

2. Each of the carriers shall file forthwith a copy of this order with the appropriate regulatory body or bodies having jurisdiction over any operations affected by this order, and likewise shall file, and publish in accordance with law, and continue in effect until further order, tariffs or schedules, or appropriate supplements to filed tariffs or schedules, setting forth any changes in rates, charges, rules, regulations, and practices of the carrier which may be necessary to accord with the provisions of this order and of such plan; and forthwith shall apply to such regulatory body or bodies for special permission for such tariffs, schedules, or supplements, to become effective on the shortest notice lawfully permissible, but not prior to the effective date of this order.

3. Whenever transportation service is performed by one carrier in lieu of service by another carrier, by reason of a diversion, exchange, pooling, or similar act made or performed pursuant to the plan for joint action hereby approved, the rates, charges, rules, and regulations governing such service shall be those that would have applied except for such diversion, exchange, pooling, or other act.

4. The provisions of this order shall not be so construed or applied as to require any carrier subject hereto to perform any service beyond its transportation capacity, or to authorize or require any act or omission which is in violation of any law or regulation, or to permit any carrier to alter its legal liability to any shipper, or to exempt or release any participant in the plan from the requirements of any order of the Office of Defense Transportation now or hereafter in effect. In the event that compliance with any term of this order, or effectuation of any provision of such plan, would conflict with, or would not be authorized under, the existing interstate or intrastate operating authority of any carrier subject hereto, such carrier forthwith shall apply to the appropriate regulatory body or bodies for the granting of such

[1] Filed as part of the original document.

operating authority as may be requisite to compliance with the terms of this order, and shall prosecute such application with all possible diligence. The coordination of operations directed by this order shall be subject to the carriers' possessing or obtaining the requisite operating authority.

5. All records of the carriers pertaining to any transportation performed pursuant to this order and to the provisions of such plan shall be available for examination and inspection at all reasonable times by any accredited representative of the Office of Defense Transportation.

6. Withdrawal of a carrier from participation in the plan for joint action hereby approved shall not be made without prior approval of the Office of Defense Transportation.

7. The provisions of this order shall be binding upon any successor in interest to any carrier named in this order. Upon a transfer of any operation involved in this order, the successor in interest and the other carriers named in this order forthwith shall notify, in writing, the Office of Defense Transportation of the transfer and, unless and until otherwise ordered, the successor in interest shall perform the functions of his predecessor in accordance with the provisions of this order.

8. The plan for joint action hereby approved and all contractual arrangements made by the carriers to effectuate the plan shall not continue in operation beyond the effective period of this order.

9. Communications concerning this order should refer to it by the supplementary order number which appears in the caption hereof, and, unless otherwise directed, should be addressed to the Highway Transport Department, Office of Defense Transportation, Washington 25, D. C.

This order shall become effective July 21, 1945, and shall remain in full force and effect until the termination of the present war shall have been duly proclaimed, or until such earlier time as the Office of Defense Transportation by further order may designate.

Issued at Washington, D. C., this 17th day of July 1945.

GUY A. RICHARDSON,
Director,
Highway Transport Department,
Office of Defense Transportation.

APPENDIX 1

Elsie Dranoff, doing business as Dranoff's Express, Brooklyn, N. Y.
W. W. Miller, Jr., doing business as Miller Motor Express, Charlotte, N. C.
R. & W. Trucking Co., Inc., New York, N. Y.
Super Express Line, Inc., Brooklyn, N. Y.

[F. R. Doc. 45-12942; Filed, July 16, 1945; 2:26 p. m.]

OFFICE OF PRICE ADMINISTRATION.

[Supp. Order 94, Rev. Order 10]

OFFICE OF CIVILIAN DEFENSE HELMETS

SPECIAL EXEMPTION OF SALES

Order 10 under Supplementary Order 94 is revised and amended to read as follows:

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and in accordance with section 11 of Supplementary Order 94, *It is ordered:*

(a) Notwithstanding the provisions of any regulation or order issued prior to the effective date of this order by the Office of Price Administration, sales by resellers of Office of Civilian Defense white enameled metal helmets, with cloth "gear" and adjustable head band and chin strap, which have been or may be purchased from the United States Government are exempt from price control.

(b) This order may be revoked or amended at any time.

This order shall become effective July 17, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12948; Filed, July 16, 1945; 4:13 p. m.]

[Supp. Order 94, Rev. Order 62]

UNITED STATES DEPARTMENT OF COMMERCE

SPECIAL MAXIMUM PRICES FOR NAVY LIFE BELTS

Order 62 under Supplementary Order 94 is redesignated Revised Order 62 and is revised and amended to read as follows:

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and in accordance with section 11 of Supplementary Order 94, it is ordered:

(a) *What this order does.* This order establishes maximum prices at which unused and used Navy life belts hereinafter described may be sold by the United States Department of Commerce or by any other Government agency, and by any subsequent reseller.

(b) *Maximum prices*—(1) *Unused life belts.* The maximum prices per unused Navy life belt, described herein, in serviceable condition, shall be:

Description of Navy life belt. Belt composed of two independent tubes approximately 54" long by 4" in diameter, joined with rubber tape. Each tube has a holder for gas cartridge for self-inflation, and equipped with an 18" rubber hose for lung inflation. A buckle is attached at one end for self-adjustment.

For all sales to wholesalers, f. o. b. shipping point	$1.31
For all sales at wholesale, f. o. b. shipping point	1.75
For all sales at retail	3.15

(2) *Used life belts.* The maximum prices for a used life belt described above which has the serviceability of a new belt, is of good appearance, free from rips, tears and rust, and which has no part missing that is necessary to make it fully useful by the consumer for its intended purpose without further repair, shall be:

For all sales to wholesalers, f. o. b. shipping point	$0.85
For all sales at wholesale, f. o. b. shipping point	1.10
For all sales at retail	1.65

(c) *Discounts.* Every seller shall continue to maintain his customary discounts for cash.

(d) *Notification.* Any person who sells the life belts described in paragraph (b) to a retailer shall furnish the retailer with an invoice of sale setting forth the retailer's maximum price, and stating that the retailer is required by this order to attach to each life belt before sale a tag or label which plainly states the appropriate retail ceiling price.

(e) *Tagging.* Any person who sells the life belts described in paragraph (b) at retail shall attach to each life belt before sale a tag or label which plainly states the appropriate retail ceiling price.

(f) *Relation to other regulations and orders.* This order with respect to the commodities it covers supersedes any other regulation or order previously issued by the Office of Price Administration.

(g) *Definitions.* (1) "Sale at retail" means a sale to an ultimate consumer except as provided in (2) herein.

(2) "Sale at wholesale" means a sale by a person to any person other than an ultimate consumer; and includes a sale to an industrial, commercial, or institutional user when made by a wholesaler.

(3) "Wholesaler" means any person whose sales to resellers constitute the major part of his total sales.

(h) *Revocation and amendment.* This order may be revoked or amended at any time.

This order shall become effective July 20, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12949; Filed, July 16, 1945; 4:13 p. m.]

[RMPR 137, Order 4]

RADEILL OIL CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith; *It is ordered,* That:

The Radbill Oil Company of Philadelphia, Pennsylvania, and all other retailers located in the State of Massachusetts are hereby authorized to sell Renuzit French Dry Cleaner in 2-gallon cans at retail at prices not to exceed $1.25 per 2-gallon can.

All retailers in the District of Columbia are hereby authorized to sell Renuzit French Dry Cleaner packaged in 2-gallon cans at retail at prices not to exceed $1.09.

This Order No. 4 shall become effective on the 20th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12947; Filed, July 16, 1945; 4:12 p. m.]

[MPR 188, Amdt. 88 to Order A-1]

VITRIFIED CLAY SEWER PIPE AND ALLIED PRODUCTS

MODIFICATION OF MAXIMUM PRICES

An opinion accompanying this Amendment, issued simultaneously

herewith, has been filed with the Division of the Federal Register.

Order A–1 is amended in the following respects:

1. Paragraph (a) (33) is amended to read as follows:

(33) *Modification of maximum prices for vitrified clay sewer pipe and allied products produced in the West, Central, South Central and Rocky Mountain Areas.* (i) A manufacturer's maximum prices for vitrified clay sewer pipe and allied products, except as covered by Revised Maximum Price Regulation 206, produced in the States of Arkansas, Kansas, Nebraska, Oklahoma, Missouri, Iowa, North Dakota, South Dakota, Minnesota; Zones 3 and 4 in Wisconsin; Zones 3 and 4 in Illinois; the State of Texas; that part of Louisiana west of the Mississippi River; the States of Colorado, Utah, New Mexico; Zones 1, 2 and 3 in Wyoming; Zones 2 and 3 in Montana; Zone 3 in Idaho; Zone 2 in Nevada; and Zone 2 in Arizona, shall be his March 1942 maximum f. o. b. factory or delivered prices increased in accordance with either of the following alternative pricing methods:

(*a*) By adding an amount not in excess of 10 percent to the highest prices charged during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class, or

(*b*) By adding amounts not in excess of such amounts as may be required to maintain discount differentials between prices established under this paragraph and those established by sections 8.4, 9.4, and 10.4 of Revised Maximum Price Regulation 206, as amended, at least as favorable as those existing during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class.

The zones referred to herein shall be the same as described in Revised Maximum Price Regulation 206.

(ii) Any reseller purchasing vitrified clay sewer pipe and allied products for resale from any manufacturer who has increased his maximum price in accordance with subdivision (i) above, may increase his maximum resale prices by a dollar-and-cents amount not exceeding his actual dollars-and-cents increase in cost resulting from the increase permitted the manufacturer in subdivision (i) above.

(iii) The maximum prices granted herein shall be subject to cash, quantity, and other discounts, transportation allowances, services and other terms and conditions of sale at least as favorable as the seller extended or rendered on comparable sales to purchasers of the same class during the month of March 1942.

2. Paragraph (a) (34) is amended to read as follows:

(34) *Modification of maximum prices for vitrified clay sewer pipe and allied products produced in the Eastern and East Central Areas.* (i) A manufacturer's maximum price for vitrified clay sewer pipe and allied products except as covered by Revised Maximum Price Regulation 206 produced in the Eastern or East Central Areas, as defined below, shall be his March 1942 f. o. b. factory or delivered prices increased in accordance with either of the following alternative pricing methods:

(*a*) By adding an amount not in excess of 9 percent to the highest prices charged during the month of March 1942 for the same quality, kind and quantity of sewer pipe products delivered to purchasers of the same class, or

(*b*) By adding amounts not in excess of such amounts as may be required to maintain discount differentials between prices established under this paragraph and those established by sections 5.4 and 7.4 of Revised Maximum Price Regulation 206, as amended, at least as favorable as those existing during the month of March 1942 for the same quality, kind, and quantity of sewer pipe products delivered to purchasers of the same class.

(ii) Any reseller purchasing vitrified clay sewer pipe and allied products except as covered by Revised Maximum Price Regulation 206, for resale from any manufacturer who has modified his maximum price in accordance with subdivision (i) above, may increase his maximum resale price by a dollar-and-cents amount not exceeding his actual dollars-and-cents increase in cost resulting from the increase permitted in subdivision (i) above.

(iii) The maximum prices granted herein shall be subject to cash, quantity, and other discounts, transportation allowances, services and other terms and conditions of sale at least as favorable as the seller extended or rendered on comparable sales to purchasers of the same class during the month of March 1942.

(iv) *Definitions.* When used in this subparagraph, the term:

(*a*) "Eastern Area" means the States of Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, District of Columbia, Virginia, West Virginia, Ohio, lower peninsula of Michigan, and that portion of Kentucky described as follows: All points in Campbell and Kenton Counties and points located on the Chesapeake and Ohio Railway from Covington to Catlettsburg, inclusive, and all points on the Big Sandy Division of the Chesapeake and Ohio Railway.

(*b*) "East Central Area" means the State of Indiana, all of the State of Kentucky not included within the Eastern Area, the Upper Peninsula of Michigan, Zones 1, 2 and 5 in the State of Illinois, and Zones 1, 2 and 5 in the State of Wisconsin. In the State of Illinois: Zone 1 comprises all points on and east of Third Principal Meridian south of Baltimore and Ohio Railroad (Chicago, Illinois and Western Railroad) extending through Decatur and Tuscola to the Indiana State Line; Zone 2 covers all points on and north of the Baltimore and Ohio Railroad (Chicago, Illinois and Western Railroad) extending through Decatur and Tuscola, to the Indiana State Line, and east of Third Principal Meridian from point of intersection with the Baltimore and Ohio Railroad west of Decatur north to point of intersection with the Illinois Central Railroad near Mendota, on and east of the Illinois Central Railroad through Dixon and Freeport to the Wisconsin State Line, excepting all of Lake, Cook, Kane, DuPage and Will Counties; Zone 5 includes all of Lake, Cook, Kane, DuPage, and Will Counties. In the State of Wisconsin: Zone 1 commencing south of a line drawn from Foscoro on Lake Michigan west along the northern boundary of Kewaunee, Brown, Waupaca, Portage and Wood Counties, including the southeast corner of Shawano County, and east of a line running north and south along the western boundary of Green, Dane, Sauk, Janeau, and Wood Counties, excepting the counties of Kenosha, Racine, and Milwaukee; Zone 2 starting north of a line drawn from Foscoro on Lake Michigan along the northern boundary of Kewaunee, Brown, Waupaca, Portage and Wood Counties, and through the southeast corner of Shawano County and east of a line drawn north and south along the western boundary of Marathon, Lincoln, Oneida, and Iron Counties; Zone 5 consisting of Kenosha, Racine, and Milwaukee Counties.

This amendment shall become effective July 21, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45–12946; Filed, July 16, 1945; 4:12 p. m.]

[MPR 188, Order 4091]

MAXWELL LAMP AND SHADE CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by Maxwell Lamp and Shade Company, 874 Broadway, New York 3, N. Y.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	For sales by the manufacturer to—		For sales by any person to consumers
		Jobbers	Retailers	
17" crystal vanity lamp and shade	80	*Each* $2.25	*Each* $2.65	*Each* $4.77
23" metal and marble table lamp and rayon shade	250R and 250S	5.31	6.25	11.25
26½ crystal table lamp and rayon shade	500	6.79	7.99	14.38
	600	6.79	7.99	14.38

These maximum prices are for the articles described in the manufacturer's application dated May 22, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to

those sales and deliveries. For sales to persons other than consumers they are f. o. b. factory, 2% 10 days, net 30. The maximum price to consumers is net, delivered.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement, with the proper model number and the ceiling price inserted in the blank space:

Model No. ------
OPA Retail Ceiling Price—$------
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) Jobber's maximum prices for sales of the articles covered by this order shall be established under the provisions of section 4.5 of Supplementary Regulation 14J.

(e) This order may be revoked or amended by the Price Administrator at any time.

(f) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12950; Filed, July 16, 1945; 4:13 p. m.]

[MPR 188, Order 4092]

GRYPHON CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by Gryphon Company, 9009 Wilshire Boulevard, Beverly Hills, Calif.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	No.	Maximum prices for sales by all persons to—		
		Wholesalers	Retailers	Consumers
		Each	*Each*	*Each*
Cigarette lighter	1	$2.02	$2.70	$4.50
	2	2.02	2.70	4.50

These maximum prices are for the articles described in the manufacturer's application dated June 11, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. For sales to persons other than consumers, they are f. o. b. factory, 2% 10 days. The maximum price to consumers is net, delivered.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement, with the proper model numbers and the ceiling prices inserted in the blank spaces:

OPA Retail Ceiling Price—$------
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12951; Filed, July 16, 1945; 4:13 p. m.]

[MPR 188, Order 4093]

U. S. ALUMINUM MFG. CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by the U. S. Aluminum Manufacturing Company of 5200 Aneheim-Telegraph Road, Los Angeles 22, Calif.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for sales by any seller to—			
		Wholesalers (jobbers)	Chain and department stores	Other retailers	Consumers
		Each	*Each*	*Each*	*Each*
Lemon squeezer	5"	$0.20	$0.24	$0.27	$0.40
Frying pan	10" x 2"	1.20	1.44	1.60	2.40
Chicken fryer, pyrex cover	10" x 2⅜"	1.75	2.10	2.33	3.50
Dutch oven, cover	10" x 4½"	1.98	2.37	2.64	3.95

These maximum prices are for the articles described in the manufacturer's application dated April 25, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are for the article described in your application. They are f. o. b. factory and subject to a cash discount of 2% for payment in 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statements with the retail prices properly filled in.

OPA Retail Ceiling Price—$------
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12952; Filed, July 16, 1945; 4:14 p. m.]

[MPR 188, Order 4094]

D. & W. DISTRIBUTING CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by D. & W. Distributing Company of 174 Eldridge Street, New York, N. Y.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for sales by any seller to—			
		Wholesalers (jobbers)	Retailers (6 or more units)	Retailers (less than 6 units)	Consumers
2 burner hot plate, 2 switches, cord and plug	1A	*Each* $2.50	*Each* $3.00	*Each* $3.25	*Each* $5.00
Single burner hot plate, pin type	2A	.77	.87	.94	1.45
Space heater, bowl type	3A	2.35	2.78	2.99	4.50

These maximum prices are for the articles described in the manufacturer's application dated June 19, 1945. These prices include the Federal Excise Tax.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are for the articles described in your application. They are f. o. b. factory and subject to a cash discount of 2% for payment in 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method. § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain either of the following statements with the correct order number and price filled in:

D. & W. Distributing Company
174 Eldridge Street
New York, New York
Model No. ------
OPA Retail Ceiling Price $------
Federal Excise Tax Included
Do Not Detach or Obliterate

or

Order No. ---- under MPR 188
Model No. ----
OPA Retail Ceiling Price $----
Federal Excise Tax Included
Do Not Detach or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12953; Filed, July 16, 1945; 4:14 p. m.]

[MPR 188, Order 4095]

MATAWAN LIGHTER CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by Matawan Lighter Company, 23 Main Street, Matawan, N. J.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	No.	Maximum prices for sales by all persons to—		
		Wholesalers	Retailers	Consumers
Cigarette lighter, sterling silver, engine turned	C	*Each* $6.75	*Each* $9.00	*Each* $15.00

These maximum prices are for the articles described in the manufacturer's application dated June 30, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. For sales to persons other than consumers they are f. o. b. factory, 2% 10 days. The maximum price to consumers is net, delivered.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement:

OPA Retail Ceiling Price—$15.00 Each
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12954; Filed, July 16, 1945; 4:14 p. m.]

[MPR 188, Order 4096]

THE AUSMUS CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by The Ausmus Company, 3727 Gilbert Avenue, Dallas 4, Tex.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for any seller to—		
		Wholesalers	Retailers	Consumers
Cookie sheet	16" x 11½"	*Dozen* $4.20	*Dozen* $6.00	*Each* $0.95

These maximum prices are for the articles described in the manufacturer's application dated June 6, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regula-

tion No. 188 became applicable to those sales and deliveries. They are f. o. b. factory and subject to a cash discount of 2% for payment within 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement:

OPA Retail Ceiling Price—$0.95 Each
Do Not Detach

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the seller shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 17th day of July 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12955; Filed, July 16, 1945; 4:14 p. m.]

[MPR 260, Amdt. 1 to Order 293]

TAMPA PORT CIGAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion accompanying this amendment and pursuant to § 1358.102 (b) of Maximum Price Regulation No. 260; *It is ordered*, That:

The maximum prices for the "Tampa Chums-Panetelas" cigars set forth in paragraph (a) of Order No. 293 under Maximum Price Regulation No. 260, are amended to read as follows:

Brand	Size or frontmark	Packing	Maximum list price	Maximum retail price
Tampa Chums..	Panetelas.....	50	*Per M* $48	*Cents* 6

This amendment shall become effective July 17, 1945.

Issued this 16th day of July 1945.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 45-12957; Filed, July 16, 1945; 4:15 p. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File No. 70-1108]

AMERICAN GAS AND ELECTRIC CO. AND WHEELING ELECTRIC CO.

NOTICE OF FILING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Philadelphia, Pennsylvania, on the 16th day of July, A. D. 1945.

Notice is hereby given that a joint application and declaration has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by American Gas and Electric Company ("American Gas"), a registered holding company, and its subsidiary, Wheeling Electric Company ("Wheeling").

Notice is further given that any interested person may, not later than the 30th day of July 1945, at 5:30 p. m., e. w. t., request the Commission in writing that a hearing be held on such matter, stating the reasons for such request and the nature of his interest, or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter, such joint application and declaration, as filed or as amended, may be approved or may be permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under said Act, or the Commission may exempt such transaction as provided in Rule U-20 (a) and Rule U-100 thereof. Any such request should be addressed: Secretary, Securities and Exchange Commission, 18th and Locust Streets, Philadelphia 3, Pennsylvania.

All interested persons are referred to said joint application and declaration, which is on file in the office of this Commission, for a statement of the transactions therein proposed, which are summarized as follows:

Wheeling proposes to issue and sell to American Gas, the owner of all its presently outstanding common stock, and American Gas proposes to acquire, 7,154 shares of Wheeling's common stock, no par value, for $1,000,000.00 cash. The 7,154 shares constitute all of the presently authorized but unissued shares of common stock of Wheeling. Wheeling proposes to use the proceeds of such sale for the construction of additional utility facilities.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 45-12972; Filed, July 17, 1945; 11:17 a. m.]

UNITED STATES COAST GUARD.

APPROVAL OF EQUIPMENT

By virtue of the authority vested in me by R. S. 4405, 4417a, 4426, 4481, 4488, and 4491, as amended, 49 Stat. 1544 (46 U.S.C. 375, 391a, 404, 474, 481, 489, 367), and Executive Order 9083, dated February 28, 1942 (3 CFR, Cum. Supp.), the following approval of equipment is prescribed:

LIFEBOATS

12' x 4.5' x 1.92' metallic oar-propelled lifeboat (6-person capacity) for river service only (General Arrangement Dwg. No. G-211a, Rev. 25 May, 1945), submitted by C. C. Galbraith & Son, Inc., 99 Park Place, New York, N. Y. (Supersedes approval 18 January, 1943, 8 F.R. 501)

22' x 7.5' x 3.25' metallic motor-propelled lifeboat, Design K-108, 251 cu. ft. capacity (25-person peacetime capacity, 16-person wartime capacity) (General Arrangement Dwg. No. K-108-2, Alt. 2), manufactured by Kargard Boat and Engine Co., Marinette, Wisconsin.

16' x 5.71' x 2.29' metallic oar-propelled lifeboat (12-person peacetime capacity, 9-person wartime capacity) (General Arrangement Dwg. No. 2043, dated 8 June, 1945), submitted by Imperial Lifeboat and Davit Co., Inc., Athens, New York.

LUMINOUS MARKING FOR INTERIOR ACCOMMODATIONS

Luminous marking, designated Type A, with adhesive attached, submitted by John Mackler & Co., Inc., Chicago Heights, Illinois.

Luminous marking, designated Type CH-15, with adhesive attached, submitted by Charles F. Heaphy Co., 420 Lexington Avenue, New York 17, N. Y.

Luminous marking, designated Type CH-18, without adhesive, submitted by Charles F. Heaphy Co., 420 Lexington Avenue, New York 17, N. Y., attached with Mikah adhesive Q-2241, manufactured by National Starch Products Co., 270 Madison Avenue, New York 16, N. Y.

Luminous marking, designated Type CH-24, without adhesive, submitted by Charles F. Heaphy Co., 420 Lexington Avenue, New York 17, N. Y., attached with Mikah adhesive Q-2241, manufactured by National Starch Products Co., 270 Madison Avenue, New York 16, N. Y.

Dated: July 16, 1945.

R. R. WAESCHE,
Admiral, U. S. C. G., Commandant.

[F. R. Doc. 45-12969; Filed, July 17, 1945; 10:49 a. m.]

WAR PRODUCTION BOARD.

[C-337, Revocation]

SMITH'S RESTAURANT, INC. AND SULLIVAN-FOSTER, INC.

CONSENT ORDER

Consent Order C-337 was issued May 18, 1945, against Smith's Restaurant, Incorporated, and Sullivan-Foster, Incorporated, for having violated Conservation Order L-41 upon consent of the above-named parties, the Regional Compliance Manager and the Regional Attorney and with the approval of the Compliance Commissioner. Smith's Restaurant, Incorporated, and Sullivan-Foster, Incorporated, have now applied for revocation of the consent order, and the Regional Compliance Manager and the Regional Attorney have indicated their concurrence.

Accordingly, the Director of the Compliance Division and the Office of the General Counsel have determined that the occasion of Consent Order C-337 no longer exists and, therefore, it is hereby revoked.

Issued this 17th day of July 1945.

WAR PRODUCTION BOARD,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 45-12973; Filed, July 17, 1945; 11:18 a. m.]